

PURCHASE AND SALE AGREEMENT

BY AND BETWEEN

SFG ISF COLUMBUS WILLIAMS, LLC,

a Delaware limited liability company,

as Seller

AND

BBI REAL ESTATE HOLDINGS, LLC,

an Ohio limited liability company,

as Buyer

February 23, 2026

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PURCHASE AND SALE AGREEMENT

THIS PURCHASE AND SALE AGREEMENT (this “**Agreement**”) is made and entered into this 23rd day of February, 2026, (the “**Effective Date**”) by and between **SFG ISF COLUMBUS WILLIAMS, LLC**, a Delaware limited liability company (“**Seller**”), and **BBI REAL ESTATE HOLDINGS, LLC**, an Ohio limited liability company (“**Buyer**”).

WITNESSETH:

1. **Agreement to Sell and Purchase.** For and in consideration of the Earnest Money (as hereinafter defined) paid by Buyer to Escrow Agent (as hereinafter defined), the mutual covenants and agreements contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Seller hereby agrees to sell and convey to Buyer, and Buyer hereby agrees to purchase and take from Seller, subject to and in accordance with all of the terms and conditions of this Agreement, the following:

(a) All that certain lot, tract or parcel of improved real estate more particularly described on **Exhibit “A”** attached hereto, together with all plants, shrubs and trees located thereon, and together with all rights, ways and easements appurtenant thereto (collectively, the “**Land**”);

(b) All buildings, structures and other improvements located on the Land and all fixtures attached or affixed, actually or constructively, to the Land or to any such buildings, structures or other improvements (collectively, the “**Improvements**”); and

(c) Any goods, equipment, machinery, apparatus, fittings, furniture, furnishings and other personal property owned by Seller and located on the Land or within the Improvements and used in connection with the operation, management or maintenance of the Land or the Improvements, but excluding any such property owned by tenants of the Improvements and removed on or prior to the Closing; subject, however, to obsolescence and consumption in the ordinary course of business between the Effective Date and the Closing Date (as hereinafter defined), and on an as-is, where-is basis with all faults, and without any representation or warranty whatsoever (collectively, the “**Personalty**”); provided, the Personalty conveyed to Buyer shall not include any goods, equipment, machinery, apparatus, fittings, furniture, furnishings or other personal property located on the Land or within the Improvements and not described or depicted on **Exhibit “B”** attached hereto (any such Personalty not described or depicted on **Exhibit “B”**, the “**Excluded Personalty**”).

The Land and Improvements are herein sometimes collectively called the “**Property**”.

2. **Purchase Price; Method of Payment.** The purchase price for the Property (the “**Purchase Price**”) shall be NINE MILLION TWO HUNDRED FIFTY THOUSAND AND NO/100 DOLLARS (\$9,250,000.00). The Purchase Price, after crediting the Earnest Money and subject to the prorations and adjustments herein described, shall be paid by Buyer to Seller on the Closing Date by a confirmed wire transfer of funds through the Federal Reserve System to an account designated by Seller.

3. **Earnest Money.**

(a) Contemporaneously with Buyer's execution and delivery of this Agreement, Buyer shall deliver to Fidelity National Title Insurance Company, 3301 Windy Ridge Parkway, Suite 300, Atlanta, Georgia, Attention Leslie M. Flowers, as escrow agent ("**Escrow Agent**") the sum of ONE HUNDRED TWENTY-FIVE THOUSAND AND NO/100 DOLLARS (\$125,000.00) (which sum, together with all interest actually earned thereon during the term of this Agreement, the "**Earnest Money**"). Notwithstanding anything to the contrary contained herein, Buyer acknowledges and agrees that a portion of the Earnest Money in an amount equal to TWENTY-FIVE THOUSAND AND NO/100 DOLLARS (\$25,000.00) (the "**Unrefundable Earnest Money**"; the remaining Earnest Money being referred to herein as the "**Refundable Earnest Money**") shall, subject only to Sections 8(d), 15(b), 16(a) and 17(a) of this Agreement, be fully nonrefundable upon Buyer's execution of this Agreement.

(b) If Buyer shall fail to deliver any Earnest Money to Escrow Agent on or before the date herein required, then Seller shall have the right to elect (in its sole and absolute discretion) to terminate this Agreement by written notice to Buyer, in which event all rights and obligations of the parties under this Agreement shall expire, and this Agreement shall become null and void. All deposits by Buyer required pursuant to this Section 3 shall be in the form of a confirmed wire transfer of funds through the Federal Reserve System to an account designated by Escrow Agent, and no such deposit shall be deemed timely unless actually received by the date therefor set forth in this Section 3.

(c) Throughout the term of this Agreement, Escrow Agent shall hold and disburse the Earnest Money in accordance with the terms and conditions of this Agreement, including, without limitation, the terms and conditions set forth on **Exhibit "E"** attached hereto, and to invest the Earnest Money with a national bank whose depositors are insured by the Federal Deposit Insurance Corporation or other financial institutions located in Atlanta, Georgia as are reasonably acceptable to Buyer.

(d) On the Closing Date, the Earnest Money will be applied as part payment of the Purchase Price.

4. **Intentionally Omitted.**

5. **Closing.** The closing of the purchase and sale of the Property (the "**Closing**"), shall be conducted remotely (via mail, courier, or email, as appropriate) through Escrow Agent at or before 2:00 P.M. (Atlanta, Georgia local time) on the date that is thirty (30) days after the Due Diligence Date or at such earlier time and on such earlier date as may be mutually agreed upon by Buyer and Seller (the "**Scheduled Closing Date**"). Buyer may extend the Closing Date one (1) time for a period of up to thirty (30) days following the Scheduled Closing Date (the "**Extended Closing Date**") by: (a) delivering written notice to Seller and Escrow Agent of Buyer's election to extend, and (b) depositing with the Escrow Agent the sum of \$30,000.00 as an extension fee (the "**Extension Fee**") no later than 5:00 p.m. local time on the date that is five (5) days prior to the then-current Closing Date. Upon timely receipt, the Closing Date shall automatically be extended to the Extended Closing Date. Except as provided in Sections 8(d),

15(b), 16(a) and 17(a) of this Agreement, the Extension Fee shall be immediately earned by Seller and non-refundable to Buyer, but shall be applied as a credit against the Purchase Price due at Closing, provided the transaction closes. References herein to the “**Closing Date**” shall mean the date on which Closing occurs whether that be the Scheduled Closing Date or the Extended Closing Date (if Buyer elects to extend such date pursuant to this Section 5), or such other date if the Scheduled Closing Date or Extended Closing Date is extended by Seller pursuant to Section 8(d) hereof.

6. **Access and Inspection; Examination by Buyer.**

(a) From the Effective Date through and including the Closing Date, Buyer and Buyer’s employees, agents, representatives and contractors (collectively, the “**Buyer’s Agents**”) shall have a temporary, non-exclusive, revocable license to enter upon the Property upon no less than 48 hours prior notice and request to Seller, for the purposes of inspecting the physical condition of the Property, conducting non-intrusive physical and environmental inspections of the Property, conducting surveys, mechanical and structural engineering studies, and any other investigations, examinations, tests and inspections as Buyer may reasonably require to assess the condition of the Property (collectively, the “**Inspections**”). Buyer shall not (i) contact or otherwise communicate with any person using, occupying or providing services at the Property (except the property manager), including without limitation, any tenants, without the Seller’s express prior written consent and without a representative of Seller present; (ii) contact or communicate with any public, governmental or quasi-governmental official pertaining to the Property or the transaction contemplated by this Agreement, without the Seller’s express prior written consent and without a representative of Seller present (other than routine communications in connection with property condition, zoning and/or Phase I reports, which shall not require the consent of Seller); and/or (iii) interfere with the use of the Property by any tenant or occupant. If Buyer notifies Seller of Buyer’s desire to access a space occupied by a tenant (an “**Occupied Space**”) in conducting Buyer’s Inspections, Seller shall endeavor to arrange access to the Occupied Space, provided, in all cases, access to an Occupied Space shall be subject to and limited by the terms of the lease or other agreement for occupancy governing such Occupied Space, and Seller’s failure to arrange access to an Occupied Space shall not constitute a default of Seller under this Agreement. Notwithstanding anything contained herein to the contrary, Buyer’s access to any Occupied Space shall occur only during normal business hours, and Buyer shall cooperate with any reasonable request by Seller related thereto. Seller expressly reserves the right to be present during any Inspections. In the event Seller cannot reasonably be available on the date and time during which Buyer’s Agents desire to access the Property, the parties shall use reasonable efforts to mutually agree upon a convenient time for access. Buyer agrees that (1) any activities by or on behalf of Buyer, including, without limitation, the Inspections, the entry by Buyer or any of Buyer’s Agents onto the Property or the other activities of Buyer or any of Buyer’s Agents with respect to the Property (collectively, “**Buyer’s Activities**”) shall not damage the Property in any manner whatsoever, (2) in the event the Property is altered or disturbed in any manner in connection with any Buyer’s Activities, Buyer shall, at Buyer’s sole cost and expense, repair and restore the Property to the condition existing prior to Buyer’s Activities as soon as reasonably practicable, and (3) Buyer shall indemnify, defend and hold Seller and its owners, affiliates, agents, employees and representatives free and harmless from and against any and all third-party claims, liabilities, damages, liens, losses, injury, costs and expenses of any kind or nature whatsoever (including,

without limitation, attorneys' fees and expenses and court costs) suffered, incurred or sustained by any such indemnified party as a result of, by reason of, or in connection with any Buyer's Activities, except to the extent caused by Seller's gross negligence or willful misconduct. Notwithstanding anything contained herein to the contrary, without first obtaining Seller's written consent thereto (which consent may be withheld or conditioned in Seller's sole and absolute discretion), neither Buyer nor any of Buyer's Agents shall have the right to undertake any intrusive physical investigations or environmental assessments or environmental studies or testing beyond the scope of a standard "Phase I" evaluation. Buyer agrees that, in exercising its rights of access hereunder and conducting the Buyer's Activities, Buyer will not, and will not permit Buyer's Agents to, interfere or disrupt in any material respect the operations, services, management and leasing activities and the rights of Seller and Seller's tenants at the Property. Buyer shall provide not less than 48 hours prior notice to Seller's representative Suzanne Boryska of Lincoln Property Company at SBoryska@LPC.com (copying Jonathan Ashley at jonathan.ashley@stonemontfinancial.com) for any access requests by Buyer or Buyer's Agents, and Buyer will, and will cause all Buyer's Agents to, comply with all reasonable requests of Seller and Seller's tenants at the Property in conducting any Inspections so as to avoid any such interference or disruptions.

(b) Buyer shall have until 5:00 P.M. (Atlanta, Georgia local time) on the date that is forty-five (45) days after the Effective Date (the "**Due Diligence Date**") during which to perform such Inspections as Buyer shall deem necessary or desirable to determine whether the Property is suitable and satisfactory to Buyer. In the event Buyer shall determine that the Property is not suitable and satisfactory to Buyer, Buyer shall have the right to terminate this Agreement by: (i) giving written notice to Seller on or before the Due Diligence Date; and (ii) delivering to Seller, on or before Due Diligence Date, the items required by Section 6(d) and Section 18(b) of this Agreement. In the event Buyer timely gives Seller the notice required by the immediately preceding sentence, then Escrow Agent shall return the Refundable Earnest Money to Buyer promptly upon request, all rights and obligations of the parties under this Agreement shall expire (except for those that expressly survive termination), and this Agreement shall become null and void. If Buyer does not terminate this Agreement in accordance with this Section 6(b) on or before the Due Diligence Date, Buyer shall have no further right to terminate this Agreement pursuant to this Section 6(b), and subject only to Sections 8(d), 15(b), 16(a), and 17(a) of this Agreement, the whole of the Earnest Money shall be fully nonrefundable.

(c) Prior to any entry by Buyer or any of Buyer's Agents onto the Property, Buyer shall: (i) if Buyer does not then have such a policy in force, procure a policy of commercial general liability insurance, with a contractual liability endorsement that covers Buyer's indemnity obligations set forth in this Agreement, is issued by an insurer reasonably satisfactory to Seller, insuring all activity and conduct of Buyer and Buyer's Agents while exercising the right of access provided for in this Agreement including Buyer's Inspections and Buyer's Activities, with limits of no less than \$2,000,000.00 in the aggregate and \$1,000,000.00 for bodily injury or death in any one accident, and not less than \$1,000,000 for property damage; and (ii) deliver to Seller a Certificate of Insurance, evidencing that such insurance is in force and effect, and evidencing that Seller has been named as an additional insured thereunder with respect to any Buyer's Activities (such Certificate of Insurance shall be delivered to Seller, at the address for notices set forth below). Such insurance shall be written on an "occurrence" basis, and shall be maintained in force

until the earlier of (x) the termination of this Agreement and the conclusion of all Buyer's Activities, or (y) Closing.

(d) Within five (5) business days after the Effective Date, Seller shall provide Buyer with copies of the items identified on **Exhibit "J"** (collectively, the "**Due Diligence Materials**"), to the extent within Seller's possession or control, for Buyer's review. Seller shall also deliver to Buyer or make available to Buyer for inspection upon request such other information concerning the Property and its operation as Buyer may reasonably request, provided that such information is in the possession and/or control of the Seller (and any such additional information provided to Buyer shall be included as part of the Due Diligence Materials). The Due Diligence Materials now or hereafter provided are provided to Buyer without any representation or warranty of any kind or nature whatsoever and are merely provided to Buyer for Buyer's informational purposes. Until Closing, Buyer and Buyer's Agents shall maintain all Due Diligence Materials as confidential information. If the purchase and sale of the Property is not consummated in accordance with this Agreement, regardless of the reason or the party at fault, Buyer shall immediately re-deliver to Seller, or in the case of electronic copies, destroy, all copies of the Due Diligence Materials, whether such copies were actually delivered by Seller or are duplicate copies made by Buyer or Buyer's Agents, and Buyer shall provide a written certification as to the destruction of any such Due Diligence Materials.

(e) Buyer shall keep the Property free from any liens arising out of any work performed, materials furnished or obligations incurred by or on behalf of Buyer or Buyer's Agents with respect to any inspection or testing of the Property. If any such lien shall at any time be filed, Buyer shall cause the same to be discharged of record within twenty (20) days after notice from Seller thereof or knowledge by Buyer thereof by satisfying the same or, if Buyer in its discretion and good faith determines that such liens should be contested, by obtaining a bond sufficient to cause any such lien to be insured over by Seller's title insurance company. Failure by Buyer to discharge such lien or obtain such bond within said twenty (20) day period shall be a material breach of this Agreement and shall entitle Seller, at its option and in addition to any other remedy Seller may have at law, in equity or by contract, immediately to declare this Agreement to be terminated.

7. **Prorations and Adjustments to Purchase Price.** The following prorations and adjustments shall be made between Buyer and Seller at Closing:

(a) Real estate taxes and assessments for the Property ("**Taxes**"), based upon a calendar year basis, shall be prorated as of the Closing Date for the year in which Closing occurs. For purposes of clarification, Seller shall be responsible for all Taxes for the time periods prior to and including the Closing Date (and shall pay any Taxes for each calendar year prior to the year in which Closing occurs prior to delinquency upon receipt of an updated tax bill for such years), and Buyer shall be responsible for such Taxes for the time period after the Closing Date. All prorations for Taxes with respect to the year in which the Closing Date occurs shall be based upon the most recent available tax rates, assessments and valuations of the Franklin County Auditor as of the Closing Date, but shall be subject to adjustment post-Closing, within thirty (30) days after the Buyer's receipt of the final real estate tax bill for the tax year in which the Closing Date occurs; provided, however, Seller shall have no further obligations under this subsection (a) following the

date that is two (2) years following the Closing; provided, further, however, for the avoidance of doubt, Seller shall have no liability for any increase in Taxes related to the sale of the Property to Buyer, and any such increase shall be the sole responsibility of Buyer.

(b) All utility charges for the Property (including, without limitation, telephone, water, storm and sanitary sewer, electricity, gas, garbage and waste removal) that are not required to be reimbursed or paid directly by tenants under the Leases shall be prorated as of the Closing Date, any transfer fees required with respect to any such utility shall be paid by or charged to Buyer, and Seller shall be credited with any deposits transferred to the account of Buyer; provided, however, that at either party's election any one or more of such utility accounts shall be closed as of the Closing Date, in which event Seller shall be liable and responsible for all charges for service through the Closing Date and shall be entitled to all deposits theretofore made by Seller with respect to such utility, and Buyer shall be responsible for reopening and reinstituting such service in Buyer's name, and shall be responsible for any fees, charges and deposits required in connection with such new account. To the extent that operating expenses of the Property, including but not limited to, water and sewer use charges, garbage and waste removal, gas, electricity and other utility bills and all expenses in connection with all management, service and other contracts and agreements are paid directly by the tenants under the Leases, there shall be no proration of said expenses between Buyer and Seller at Closing.

(c) Any other items which are customarily prorated in connection with the purchase and sale of properties similar to the Property shall be prorated as of the Closing Date.

Subject to Section 7(a), in the event that the amount of any item to be prorated is not determinable at the time of Closing, such proration shall be made on the basis of the best available information, and the parties shall re-prorate such item promptly upon receipt of the applicable bills therefor and shall make between themselves any equitable adjustment required by reason of any difference between the estimated amount used as a basis for the proration at Closing and the actual amount subject to proration. In the event any prorated item is due and payable at the time of Closing, the same shall be paid at Closing. If any prorated item is not paid at Closing, Seller shall deliver to Buyer the bills therefor promptly upon receipt thereof and Buyer shall be responsible for the payment in full thereof within the time fixed for payment thereof and before the same shall become delinquent. In making the prorations required by this Section 7, the economic burdens and benefits of ownership of the Property for the Closing Date shall be allocated to Seller.

8. **Title and Survey.**

(a) For the purposes of this Agreement, "good and marketable fee simple title" shall mean such title as is insurable by the Escrow Agent (in such capacity, the "Title Company") under its standard form of ALTA 2021 owner's policy of title insurance ("**Title Policy**"), at its standard rates, subject only to the following (collectively, the "**Permitted Exceptions**"): (i) the standard or printed exceptions or exclusions in the form of owner's policy of title insurance referenced above (without limiting any right of Buyer to seek the deletion of the same upon the Title Company's receipt of the Seller's Affidavit delivered pursuant to Section 9(a)(iv) hereof); (ii) such matters as would be disclosed by a current and accurate survey and/or inspection of the Property; (iii) the lien for Taxes not due and payable on or before the Closing Date; (iv) zoning

ordinances affecting the Property; (v) all easements, covenants, restrictions, reservations, rights-of-way and other similar matters of record as of the Effective Date which are approved, deemed approved or waived by Buyer pursuant to this Section 8; (vi) any laws, codes, ordinances, rules, regulations or public restrictive covenants applicable to or affecting the Property; (vii) all matters listed on the Title Commitment (as hereinafter defined) obtained by Buyer which are approved, deemed approved or waived by Buyer pursuant to this Section 8; and (viii) all other matters, if any, approved, deemed approved or waived by Buyer pursuant to this Section 8.

(b) Within ten (10) business days after the Effective Date, Seller shall obtain and provide to Buyer an updated title search and commitment for the Property (the “**Title Commitment**”) for the Title Policy, issued by the Title Company and showing the status of title to the Property and evidencing the willingness of the Title Company to insure the same as required hereunder. The Title Commitment shall include copies of all exception documents. Buyer shall have until the date that is ten (10) days prior to the Due Diligence Date (the “**Buyer’s Objection Date**”) in which to examine title to the Property and in which to give Seller written notice of any objections which render Seller’s title less than good and marketable fee simple title (“**Buyer’s Objection Notice**”). Buyer’s failure to specify in the Buyer’s Objection Notice any objection to any matter appearing of record as of the date of Buyer’s Objection Notice shall be deemed to be, and shall constitute, a waiver of any such objection to such matter, and such matter shall thereafter constitute a Permitted Exception under this Agreement. If Buyer shall fail to examine title to the Property or to deliver Seller Buyer’s Objection Notice to Seller on or before the Buyer’s Objection Date, Buyer shall be deemed to have waived all objections to any matters appearing of record as of the Buyer’s Objection Date, and all such matters shall thereafter constitute Permitted Exceptions under this Agreement. Buyer may reexamine title to the Property up to and including the Closing Date and give Seller written notice of any additional objections (an “**Additional Objection Notice**”) Buyer has with respect to any new exception appearing of record and on the Title Commitment subsequent to the date of Buyer’s Objection Notice (a “**New Exception**”), by the earlier of (i) the Closing Date or (ii) the date that is five business (5) days of Buyer obtaining knowledge of such New Exception, in which case Seller shall have the same rights as applicable to the initial Buyer’s Objection Notice pursuant to this Section 8 for any such New Exception. Buyer’s failure to object to any such New Exception by providing an Additional Objection Notice prior to the Closing Date or the expiration of the five (5) business day period referenced above, as applicable, shall be deemed to be, and shall constitute, a waiver of any such objection, and such New Exception shall thereafter constitute a Permitted Exception under this Agreement. In the event of an Additional Objection Notice provided on the Closing Date or within three (3) days prior to the Closing Date, the Closing Date shall be automatically extended to the business day after the Additional Response Date (defined below) based on the date that the Additional Objection Notice was provided by Buyer, which adjusted Closing Date shall be subject to further extension in accordance with the terms of this Agreement. Notwithstanding anything to the contrary, Permitted Exceptions shall not include monetary liens and other encumbrances expressly incurred or assumed by Seller which can be satisfied by the payment of ascertainable amounts (the “**Monetary Liens**”). Seller covenants and agrees that it shall satisfy, at or before Closing, all Monetary Liens regardless of whether Buyer has objected to such Monetary Liens; provided, however, that monetary liens which are disputed by Seller may instead be insured over by

endorsement to the Title Policy, at Seller's cost, in form and content reasonably acceptable to Buyer.

(c) Seller shall have until the date that is five (5) business days from its receipt of Buyer's Objection Notice (the "**Seller's Response Date**"), in which to review Buyer's Objection Notice and, if Seller elects, in which to give Buyer written notice of any valid objections specified therein which Seller elects to cure. If, on or before Seller's Response Date, Seller fails to give such written notice to Buyer with respect to any objection specified in Buyer's Objection Notice, then Seller shall be deemed to have elected not to cure any such objection(s). If Seller gives Buyer such written notice with respect to any objection specified in Buyer's Objection Notice that Seller does not elect to cure (or is deemed to have elected not to cure), and if Buyer thereafter does not elect to terminate this Agreement pursuant to Section 6(b) hereof, then Buyer shall be deemed to have waived any objection specified in Buyer's Objection Notice as to which Seller has given Buyer such notice of its election not to cure, and any matter relating to such objection shall thereafter constitute a Permitted Exception under this Agreement. Seller shall have until the date that is three (3) business days after receipt of any Additional Objection Notice (such date, the "**Additional Response Date**"), in which to review such Additional Objection Notice and, if Seller elects, in which to give Buyer written notice of any valid objections specified therein which Seller elects to cure. If, on or before the Additional Response Date, Seller fails to give such written notice to Buyer with respect to any objection specified in such Additional Objection Notice, then Seller shall be deemed to have elected to not cure any such objection(s). If Seller gives Buyer such written notice with respect to any New Exception specified in such Additional Objection Notice that Seller does not elect to cure (or is deemed to have elected not to cure), Buyer may elect to terminate this Agreement within three (3) business days after the Additional Response Date. If Buyer fails to exercise such termination right within the three (3) business day period, then, Buyer shall be deemed to have waived any objection specified in such Additional Objection Notice as to which Seller has given Buyer such notice of its election not to cure (or is deemed to have elected not to cure), and any such New Exception shall thereafter constitute a Permitted Exception under this Agreement. Seller's failure to provide such written notice, within the required period of time, of any valid objections with respect to Buyer's Objection Notice or any Additional Objection Notice shall be deemed Seller's intention to not satisfy or cure such objections.

(d) Seller shall have until the Closing Date to satisfy all valid objections that Seller elects to cure, other than those waived by Buyer pursuant to Sections 8(b) and 8(c) of this Agreement, provided, that, Seller may extend the Closing Date for a period not to exceed thirty (30) days in order to satisfy any such valid objection(s) that Seller elected to cure, and, if after such time, Seller fails to so satisfy any such valid objections, then, at the option of Buyer, and as its sole and exclusive alternatives and remedies, Buyer may either: (i) terminate this Agreement in which event the Earnest Money and any Extension Fee shall be refunded to Buyer promptly upon request, all rights and obligations of the parties under this Agreement shall expire (except for those that expressly survive termination), Seller shall reimburse Buyer for reasonable, documented, third-party, out-of-pocket expenditures (including, without limitation, reasonable legal fees and expenses) actually incurred by Buyer in connection with its proposed acquisition of the Property ("**Pursuit Costs**") in an amount not to exceed \$50,000.00 (the "**Reimbursement Cap**"), and thereafter this Agreement shall become null and void; or (ii) waive such satisfaction and

performance and elect to consummate the purchase and sale of the Property, in which event all matters relating to such unsatisfied objections shall constitute Permitted Exceptions under this Agreement. The remedies of Buyer as set forth in clauses (i) and (ii) of this Section 8(d) shall be Buyer's sole and exclusive remedies in the event Seller fails to satisfy any valid objections, notwithstanding anything to the contrary contained herein.

(e) Buyer, at Buyer's expense, shall have the right to cause a surveyor selected by Buyer and properly licensed under the laws of the state of Ohio to prepare an ALTA survey of the Property (the "**Survey**"). Buyer shall cause an electronic copy of the Survey to be provided to Seller and Seller's attorney within two (2) business days of Buyer's receipt of such electronic copy and simultaneously with the giving of Buyer's Objection Notice and/or Additional Objection Notice, if applicable.

9. **Proceedings at Closing.** On the Closing Date, the Closing shall take place as follows:

(a) Seller shall deliver to Buyer the following documents and instruments, duly executed by or on behalf of Seller:

(i) a Limited Warranty Deed, in recordable form, in the form of, and on the terms and conditions set forth in, **Exhibit "F"** attached hereto, conveying the Land and the Improvements;

(ii) a Bill of Sale and General Assignment, in the form of, and on the terms and conditions set forth in, **Exhibit "G"** attached hereto, whereby Seller quitclaims all of Seller's right, title and interest in and to the Personalty;

(iii) an Assignment, in the form of, and on the terms and conditions set forth in, **Exhibit "H"** attached hereto (the "**Assignment**"), whereby Seller transfers and assigns to Buyer all of Seller's right, title and interest in, to and under the Assumed Contracts (as hereinafter defined), and whereby Buyer assumes and agrees to perform the duties and obligations of Seller under the Assumed Contracts arising from and after the Closing Date (which assignment shall be accepted and executed by Buyer);

(iv) a Seller's Affidavit in the form of, and on the terms and conditions set forth in, **Exhibit "I"** attached hereto;

(v) a certificate stating that the representations and warranties of Seller contained in this Agreement are true and correct in all material respects and not materially misleading as of the Closing Date;

(vi) a Certificate and Affidavit of Non-Foreign Status, in a form reasonably acceptable to Escrow Agent;

(vii) a completed 1099-S request for taxpayer identification number and certification, and acknowledgment, in a form reasonably acceptable to Escrow Agent; and

(viii) if requested by Buyer, a quitclaim deed conveying all of Seller's right, title and interest in and to the Property in accordance with the legal description prepared from the Survey in a form reasonably acceptable to Escrow Agent.

(b) Seller shall deliver to Buyer the following items, if the same have not been theretofore delivered by Seller to Buyer:

(i) To the extent required by Escrow Agent, evidence in form and substance reasonably satisfactory to Escrow Agent that Seller has the power and authority to execute and enter into this Agreement and to consummate the purchase and sale of the Property, and that any and all actions required to authorize and approve the execution of and entry into this Agreement by Seller, the performance by Seller of all of Seller's duties and obligations under this Agreement, and the execution and delivery by Seller of all documents and other items to be executed and delivered to Buyer at Closing, have been accomplished; and

(ii) If and to the extent in Seller's possession, (A) any warranties and guaranties with respect to the Property and certificates, licenses, permits, authorizations, consents and approvals of any governmental authority previously issued in connection with the Property, and (B) copies of books, records and correspondence pertinent to the continued use, occupancy and operation of the Property.

(c) Buyer shall:

(i) pay the Purchase Price to Seller in accordance with the provisions of this Agreement;

(ii) deliver to Seller a counterpart of the Assignment duly executed by or on behalf of Buyer; and

(iii) deliver to Seller a certificate stating that the representations and warranties of Buyer contained in this Agreement are true and correct in all material respects and not materially misleading as of the Closing Date;

(iv) deliver to Seller evidence in form and substance reasonably satisfactory to Escrow Agent that Buyer has the power and authority to execute and enter into this Agreement and to consummate the purchase and sale of the Property, and that any and all actions required to authorize and approve the execution of and entry into this Agreement by Buyer, the performance by Buyer of all of Buyer's duties and obligations under this Agreement, and the execution and delivery by Buyer of all documents and other items to be executed and delivered to Seller at Closing, have been accomplished.

10. **Costs of Closing.** Seller shall bear and pay (a) any state and county transfer taxes payable in connection with the conveyance of the Property, (b) Seller's attorneys' fees, (c) the commission due and payable to the Seller's Broker, (d) the cost of preparing the Deed, (e) the cost of the Title Commitment, (f) the cost of the premium for the Title Policy, and (g) one-half of any escrow fees charged by Escrow Agent. Buyer shall bear and pay (a) all recording costs, (b)

the commission due and payable to the Buyer's Broker, (c) the costs associated with any extended coverage or endorsements to the Title Policy, (d) any costs associated with lender's title policy premiums and accompanying endorsements, (e) any transfer taxes payable in connection with the conveyance of the Property aside from state and county transfer taxes, (f) Buyer's attorneys' fees, (g) the costs associated with the Survey and (h) one-half of any escrow fees charged by Escrow Agent. All other costs and expenses incident to this transaction and the closing thereof shall be paid by the party incurring the same.

11. **Disclaimer of Warranties.** EXCEPT AS SET FORTH IN SECTION 14(A) OF THIS AGREEMENT OR AS SET FORTH IN ANY DOCUMENTS DELIVERED BY SELLER TO BUYER AT CLOSING PURSUANT TO SECTION 9(A) OF THIS AGREEMENT, SELLER DOES NOT, BY THE EXECUTION AND DELIVERY OF THIS AGREEMENT, AND SELLER SHALL NOT, BY THE EXECUTION AND DELIVERY OF ANY DOCUMENT OR INSTRUMENT EXECUTED AND DELIVERED IN CONNECTION WITH CLOSING, MAKE ANY REPRESENTATION OR WARRANTY, EXPRESS OR IMPLIED, OF ANY KIND OR NATURE WHATSOEVER, WITH RESPECT TO THE PROPERTY, AND ALL SUCH WARRANTIES ARE HEREBY DISCLAIMED. WITHOUT LIMITING THE GENERALITY OF THE FOREGOING, SELLER MAKES, AND SHALL MAKE, NO EXPRESS OR IMPLIED WARRANTY AS TO MATTERS OF TITLE (OTHER THAN SELLER'S LIMITED WARRANTY OF TITLE SET FORTH IN THE LIMITED WARRANTY DEED TO BE DELIVERED AT CLOSING), ZONING, TAX CONSEQUENCES, PHYSICAL OR ENVIRONMENTAL CONDITION (INCLUDING, WITHOUT LIMITATION, LAWS, RULES, REGULATIONS, ORDERS AND REQUIREMENTS PERTAINING TO THE USE, HANDLING, GENERATION, TREATMENT, STORAGE OR DISPOSAL OF ANY TOXIC OR HAZARDOUS WASTE OR TOXIC, HAZARDOUS OR REGULATED SUBSTANCE), VALUATION, GOVERNMENTAL APPROVALS, GOVERNMENTAL REGULATIONS OR ANY OTHER MATTER OR THING RELATING TO OR AFFECTING THE PROPERTY, (COLLECTIVELY, THE "**DISCLAIMED MATTERS**"). BUYER AGREES THAT, WITH RESPECT TO THE PROPERTY, BUYER HAS NOT RELIED UPON AND WILL NOT RELY UPON, EITHER DIRECTLY OR INDIRECTLY, ANY REPRESENTATION OR WARRANTY OF SELLER, BUYER WILL CONDUCT SUCH INSPECTIONS AND INVESTIGATIONS OF THE PROPERTY (INCLUDING, BUT NOT LIMITED TO, THE PHYSICAL AND ENVIRONMENTAL CONDITION THEREOF) AND RELY UPON SAME AND, UPON CLOSING, SHALL ASSUME THE RISK THAT ADVERSE MATTERS, INCLUDING, BUT NOT LIMITED TO, THE DISCLAIMED MATTERS, MAY NOT HAVE BEEN REVEALED BY BUYER'S INSPECTIONS AND INVESTIGATIONS. SUCH INSPECTIONS AND INVESTIGATIONS OF BUYER SHALL BE DEEMED TO INCLUDE AN ENVIRONMENTAL AUDIT OF THE PROPERTY, AN INSPECTION OF THE PHYSICAL COMPONENTS AND GENERAL CONDITION OF ALL PORTIONS OF THE PROPERTY, SUCH STATE OF FACTS AS AN ACCURATE SURVEY AND INSPECTION OF THE PROPERTY WOULD SHOW, PRESENT AND FUTURE ZONING AND LAND USE ORDINANCES, RESOLUTIONS AND REGULATIONS OF THE CITY, COUNTY AND STATE WHERE THE PROPERTY IS LOCATED AND THE VALUE AND MARKETABILITY OF THE PROPERTY. SELLER SHALL SELL AND CONVEY TO BUYER, AND BUYER SHALL ACCEPT, THE PROPERTY "AS IS", "WHERE IS", AND

WITH ALL FAULTS, AND THERE ARE NO ORAL AGREEMENTS, WARRANTIES OR REPRESENTATIONS, COLLATERAL TO OR AFFECTING THE PROPERTY BY SELLER OR ANY THIRD PARTY. WITHOUT IN ANY WAY LIMITING ANY PROVISION OF THIS SECTION 11, BUYER SPECIFICALLY ACKNOWLEDGES AND AGREES THAT IT HEREBY WAIVES, RELEASES AND DISCHARGES ANY CLAIM IT HAS, MIGHT HAVE HAD OR MAY HAVE AGAINST SELLER WITH RESPECT TO (i) THE DISCLAIMED MATTERS, (ii) THE CONDITION OF THE PROPERTY, EITHER PATENT OR LATENT, (iii) THE PAST, PRESENT OR FUTURE CONDITION OR COMPLIANCE OF THE PROPERTY WITH REGARD TO ANY ENVIRONMENTAL PROTECTION, POLLUTION CONTROL OR LAND USE LAWS, RULES, REGULATIONS, ORDERS OR REQUIREMENTS, INCLUDING, WITHOUT LIMITATION, CERCLA, AND (iv) ANY OTHER STATE OF FACTS THAT EXISTS WITH RESPECT TO THE PROPERTY. THE TERMS AND CONDITIONS OF THIS SECTION 11 SHALL EXPRESSLY SURVIVE THE CONSUMMATION OF THE PURCHASE AND SALE OF THE PROPERTY ON THE CLOSING DATE, THE DELIVERY OF THE DEED AND THE PAYMENT OF THE PURCHASE PRICE, WITHOUT REGARD TO ANY LIMITATIONS UPON SURVIVAL SET FORTH IN THIS AGREEMENT.

12. **Possession at Closing.** Seller shall surrender possession of the Property to Buyer on the Closing Date, subject only to the Permitted Exceptions.

13. **Closing Conditions.**

(a) **Buyer's Closing Conditions.** Buyer's obligations to close the transactions described in this Agreement are subject to the satisfaction at or prior to Closing of the following conditions precedent (the "**Buyer Closing Conditions**"):

(i) Seller shall have performed all of its obligations as set forth in Section 9(a) and 9(b) of this Agreement.

(ii) Seller shall have delivered to Buyer evidence reasonably acceptable to Buyer of the effective termination of the Leases; provided, however, Seller shall have the option, in its sole discretion, to extend the Closing Date for a period not to exceed thirty (30) days by written notice delivered on or before the then scheduled Closing, in order to obtain evidence reasonably acceptable to Buyer of the effective termination of the Leases.

(iii) The express representations and warranties made by Seller in Section 14(a) of this Agreement shall be true and correct in all material respects as of the Closing (or as of such other date to which such representation or warranty expressly is made), and Seller shall not be in material breach of any of its covenants set forth in Section 14(b) of this Agreement.

If any of the Buyer Closing Conditions are not satisfied at Closing, then, subject to the express notice and cure provisions set forth in Section 15(b) below, the terms and conditions of Section 14(b)(xi) below, and Seller's right to extend the Closing Date set forth in Section 8(d) and

Section 13(a)(ii) above, Buyer shall have the right to (i) terminate this Agreement by providing notice to Seller, in which case the Earnest Money and any Extension Fee shall be refunded to Buyer and the parties shall have no further rights or obligations under this Agreement, except those which expressly survive such termination (and upon exercise of such right of termination, Seller shall reimburse Buyer for its Pursuit Costs in an amount not to exceed the Reimbursement Cap, to the extent such Buyer Closing Condition is not satisfied as a result of (1) the failure of Seller to satisfy the condition set forth in Section 13(a)(ii) above, (2) the failure of the representations and warranties made by to be true and correct in all material respects as result of any act or omission of Seller or any affiliate of Seller or any other breach of this Agreement by Seller, or (3) any breach of this Agreement by Seller), or (ii) waive any of the Buyer Closing Conditions at or prior to Closing and proceed to Closing; provided, however, that Buyer shall not be deemed to have waived any failure of a Buyer Closing Condition unless (x) the Closing occurs, (y) Buyer has provided Seller with notice of such waiver prior to Closing or (z) such Buyer Closing Condition was the subject of a Seller's Warranty Notice delivered pursuant to Section 14(b)(xi) below and Buyer failed to terminate this Agreement in accordance with terms of such section. Buyer's rights and remedies under this Section shall not be exclusive of any other rights and remedies of Buyer in this Agreement.

(b) Seller's Closing Conditions. Soller's obligations to close the transactions described in this Agreement are subject to the satisfaction at or prior to Closing of the following conditions precedent (the "**Seller Closing Conditions**"):

(i) Buyer shall have performed all of its obligations as set forth in Section 9(c) of this Agreement.

(ii) The express representations and warranties made by Buyer in this Agreement shall be true and correct in all material respects as of the Closing (or as of such other date to which such representation or warranty expressly is made).

If any of the Seller Closing Conditions are not satisfied at Closing, then, subject to the express notice and cure provisions set forth in this Agreement governing a Buyer default, Seller shall have the right to: (i) terminate this Agreement by providing notice to Buyer, in which case the Earnest Money and any Extension Fee shall be disbursed to Seller, and the parties shall have no further rights or obligations under this Agreement, except for those which expressly survive such termination, or (ii) waive any of the Seller Closing Conditions at or prior to Closing; provided, however, that Seller shall not be deemed to have waived any failure of a Seller Closing Condition unless the Closing is actually authorized by Seller or Seller has provided Buyer with notice of such waiver prior to Closing. Seller's rights and remedies under this Section shall not be exclusive of any other rights and remedies of Seller in this Agreement.

14. **Representations, Warranties, and Covenants.**

(a) Seller's Representations. Except as otherwise set forth in the Due Diligence Materials, Seller represents and warrants to Buyer as follows as of the Effective Date:

(i) Seller is, and at the Closing shall be, a limited liability company formed under the laws of the State of Delaware. Seller has the right, power and authority to make and perform its obligations under this Agreement without the need for governmental approval, consent or filing. The execution, delivery and performance of this Agreement in accordance with its terms, do not violate the operating agreement of Seller, or any contract, agreement, commitment, order, judgment or decree to which Seller is a party or by which it is bound. Seller has the right, power and authority to make and perform its obligations under this Agreement. This Agreement is a valid and binding obligation of Seller enforceable against Seller in accordance with its terms;

(ii) Seller owns fee simple title to the Property and is lawfully seized and possessed of and has the right to sell and convey the Property;

(iii) Except as otherwise disclosed in Seller's Due Diligence Materials delivered to Buyer, Seller has not received any written notice that the Property is in material violation of any federal, state, county or municipal law, ordinance or regulation;

(iv) Seller has not received any written notice of pending or threatened condemnation proceedings affecting the Property or threatened condemnation of all or any part of the Property;

(v) To Seller's knowledge, all required permits, occupancy certificates and other governmental approvals for occupancy and operation for the Property by Seller have been obtained and maintained in full force and effect;

(vi) **Exhibit "C"** hereto contains a true and correct list of all leases and other agreements for the use, occupancy or possession of all or any part of the Land or the Improvements currently in effect as of the Effective Date, along with all amendments, modifications, and supplements thereto (collectively, the "**Leases**");

(vii) **Exhibit "D"** hereto contains a true and correct list of all third-party vendor contracts to which Seller is a party relating to the operation and maintenance of the Property currently in effect, along with all amendments, modifications, and supplements thereto (collectively, the "**Vendor Contracts**"). With respect to the Vendor Contracts: (i) Seller has no knowledge of any existing defaults under the Vendor Contracts; and (ii) Seller has no knowledge of any claims, offsets or defenses by tenants under the Vendor Contracts;

(viii) With respect to Taxes: (i) Seller has not received any written notice of any current or pending litigation or tax appeals against Seller or the Property; (ii) Seller has no knowledge of any pending or threatened tax increase or special assessment affecting the Property (other than (1) ordinary course tax increases that may from time to time be imposed by the relevant governmental authorities and (2) any increased taxes as a result of the resolution of prior complaints with the applicable board of revisions for the county in which the Property is located) or of any planned improvements which would reasonably be expected to result in a special assessment; and (iii) no owner's association or other non-

governmental entity has the power to levy any assessment against, or impose any lien on, the Property;

(ix) Seller is not a “foreign person” within the meaning of Section 1445 of the Internal Revenue Code of 1986, as amended; and

(x) Seller is not, and is not acting on behalf of, (a) an “employee benefit plan” (as defined in Section 3(3) of the Employment Retirement Income Security Act of 1974 (“**ERISA**”)) that is subject to Title I of ERISA, (b) a “plan” as defined in Section 4975(e)(1) of the Internal Revenue Code of 1986 (the “**Code**”) that is subject to Section 4975 of the Code (each of the foregoing a “**Plan**”), (c) an entity or account the assets of which constitute “plan assets” of one or more such Plans within the meaning of Department of Labor Regulation 29 CFR Section 2510.3-101, as modified by Section 3(42) of ERISA or (d) a “governmental plan” within the meaning of Section 3(32) of ERISA.

All of Seller’s representations and warranties contained in this Section 14(a) are expressly subject to, limited by, qualified by, and modified by, the Due Diligence Materials. To the extent that any information contained in the Due Diligence Materials conflicts with or is contrary to any representation or warranty contained in this Section 14(a), the information contained in the Due Diligence Materials shall control, the applicable representation or warranty shall be deemed to be modified, qualified, or replaced by such information contained in the Due Diligence Materials, such inconsistency shall not be deemed to be a breach by Seller of this Section 14(a).

(b) Seller’s Covenants. Seller hereby covenants and agrees that between the Effective Date and the Closing Date, Seller shall:

(i) Use commercially reasonable efforts to operate and maintain the Property in a manner generally consistent with the manner in which Seller has operated and maintained the Property prior to the Effective Date; provided, however, that in no event shall Seller be required to make any expenditures which are capital in nature.

(ii) Not create any liens, encumbrances, defects in title, restrictions or easements (other than Permitted Exceptions) that will encumber the Property after the Closing, without the prior written consent of Buyer, not to be unreasonably withheld, conditioned or delayed.

(iii) Pay or cause to be paid, in the normal course of business and, in any event, prior to Closing, payments of regularly scheduled principal and/or interest payments with respect to mortgage loans encumbering the Property, payments of real estate taxes and assessments, utilities, property insurance payments and sums due for work, materials or services furnished or otherwise incurred in the ownership and operation of the Property up to the Closing Date, in each case, to the extent then due and payable (and subject to any notice, cure and/or grace periods with respect to such payments).

(iv) Not (i) enter into any lease or agreement for the use, occupancy or possession of all or any part of the Land or the Improvements that will encumber the Property after the Closing or (ii) enter into or grant any purchase and sales agreements, options to purchase, rights of first refusal or land installment contracts with respect to all or any portion of the Property, in each case without the prior written consent of Buyer, which Buyer may withhold in its sole discretion.

(v) Neither offer for sale or sell, grant or transfer, nor permit the sale, grant or transfer of, any interest in the Property other than to Buyer in accordance with this Agreement.

(vi) Promptly advise Buyer of any investigation, finding, sanction, litigation, or governmental proceeding involving the Property that is pending or threatened and of which Seller has received written notice.

(vii) Not permit any material alteration, structural modification or additions to the Property, except in the nature of ordinary maintenance, repair, or replacement without Buyer's consent, which consent shall not be unreasonably withheld, conditioned or delayed.

(viii) Pay or cause to be paid on or prior to Closing all pre-Closing trade payables and other pre-Closing obligations of Seller related to the Property that are then due and payable.

(ix) Terminate or cause to be terminated on or prior to Closing Date all Vendor Contracts except those Vendor Contracts that Buyer agrees in writing to assume as of the Closing (the "**Assumed Contracts**") (which writing Buyer shall provide no later than the Due Diligence Date or otherwise waived), and pay all costs and fees associated with the termination of the terminated Vendor Contracts. Seller shall furnish to Buyer evidence reasonably satisfactory to Buyer that all such Vendor Contracts have been effectively terminated at or prior to the Closing. If Seller fails to timely terminate the Vendor Contracts and furnish such evidence to Buyer, Seller shall remain responsible for, and shall indemnify and hold Buyer harmless from, and any claims and expenses relating to such Vendor Contracts.

(x) On or prior to Closing, remove or cause to be removed the Excluded Personalty from the Land and Improvements.

(xi) To the extent Seller obtains knowledge of the occurrence of any event or circumstance that makes any representation or warranty of Seller to Buyer under this Agreement materially untrue or misleading, give prompt written notice to Buyer of the details of such event or circumstance ("**Seller's Warranty Notice**"). If Buyer receives a Seller's Warranty Notice, and Buyer reasonably determines that the disclosures contained in the Seller's Warranty Notice would have a material and adverse effect upon the Property or Seller's ability to convey the Property to the Buyer, then Buyer shall have the option to (i) terminate this Agreement by written notice to Seller and Escrow Agent within five (5)

business days after receipt of each Seller's Warranty Notice, in which event (A) the entire Earnest Money and any Extension Fee shall be promptly returned to Buyer by the Escrow Agent, and (B) if any such representation or warranty became untrue or incorrect as a result of an act or omission of Seller or any affiliate thereof or any other breach of this Agreement by Seller, Seller shall reimburse Buyer for its Pursuit Costs in an amount not to exceed the Reimbursement Cap, and thereafter, the parties shall have no further obligations to each other hereunder (except such obligations as are expressly set forth in this Agreement as surviving such a termination); or (ii) accept the matter disclosed by the Seller's Warranty Notice and proceed to Closing under this Agreement. Notwithstanding anything contained herein to the contrary, Seller shall not be deemed to be in default of this Agreement, and Seller shall have no other liability to Buyer under this Agreement, on account of the failure of any of its representations or warranties in this Agreement to be true and correct in all material respects as of the Closing Date (but such failure shall continue to constitute a failed Closing condition as provided in Section 13(a)), provided that such representation or warranty was true and correct in all material respects as of the Effective Date and did not become untrue or incorrect due to any act or omission of Seller or any affiliate thereof or any other breach of this Agreement by Seller.

(c) Buyer's Representations. Buyer represents and warrants to Seller as follows as of the Effective Date:

(i) Buyer is, and at the Closing shall be, a limited liability company formed under the laws of the State of Ohio. Buyer has the right, power and authority to make and perform its obligations under this Agreement without the need for governmental approval, consent or filing. The execution, delivery and performance of this Agreement in accordance with its terms, do not violate the bylaws of Buyer, or any contract, agreement, commitment, order, judgment or decree to which Buyer is a party or by which it is bound. Buyer has the right, power and authority to make and perform its obligations under this Agreement. This Agreement is a valid and binding obligation of Buyer enforceable against Buyer in accordance with its terms;

(ii) No petition has been filed by or against Buyer under the Federal Bankruptcy Code or any similar State or Federal Law;

(iii) Neither Buyer nor, to Buyer's actual knowledge, its affiliates, is in violation of any laws relating to terrorism, money laundering or the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, Public Law 107-56 and Executive Order No. 13224 (Blocking Property and Prohibiting Transactions with Persons Who Commit, Threaten to Commit, or Support Terrorism) (the "**Executive Order**") (collectively, the "**Anti-Money Laundering and Anti-Terrorism Laws**"). Neither Buyer nor, to Buyer's actual knowledge, its affiliates, is acting, directly or indirectly, on behalf of terrorists, terrorist organizations or narcotics traffickers, including those persons or entities that appear on the Annex to the Executive Order, or are included on any relevant lists maintained by the Office of Foreign Assets Control of U.S. Department of Treasury, U.S. Department of State, or other U.S. government agencies, all as may be amended from time to time (a "**Government List**").

Neither Buyer nor, to Buyer's actual knowledge, its affiliates or, without inquiry, any of its brokers or other agents, in any capacity in connection with the sale of the Property (A) conducts any business or engages in making or receiving any contribution of funds, goods or services to or for the benefit of any person included in the lists referenced above, (B) deals in, or otherwise engages in any transaction relating to, any property or interests in property blocked pursuant to the Executive Order, or (C) engages in or conspires to engage in any transaction that evades or avoids, or has the purpose of evading or avoiding, or attempts to violate, any of the prohibitions set forth in any Anti-Money Laundering and Anti-Terrorism Laws. Neither Buyer, nor any person controlling or controlled by Buyer, is a country, territory, individual or entity named on a Government List, and the monies used in connection with this Agreement and amounts committed with respect thereto, were not and are not derived from any activities that contravene any applicable anti-money laundering or anti-bribery laws and regulations (including funds being derived from any person, entity, country or territory on a Government List or engaged in any unlawful activity defined under Title 18 of the United States Code, Section 1956(c)(7)); and

(iv) Buyer is not, and is not acting on behalf of, (a) a Plan, (b) an entity or account the assets of which constitute "plan assets" of one or more such Plans within the meaning of Department of Labor Regulation 29 CFR Section 2510.3-101, as modified by Section 3(42) of ERISA or (c) a "governmental plan" within the meaning of Section 3(32) of ERISA.

(d) Knowledge. The representations of Seller set forth herein are made to the actual, present knowledge of Ryan Meehan, the individual with day to day knowledge of the Property affiliated with Seller, without such individual having any duty or obligation to make an independent inquiry or investigation. Any reference to Seller's "receipt" or language similar thereto of notices or other written documents shall mean the actual receipt of the same by Ryan Meehan. In no event shall Buyer be entitled to assert any cause of action against Ryan Meehan nor shall Ryan Meehan have any personal liability whatsoever for any matter under or related to this Agreement.

15. Remedies.

(a) If the purchase and sale of the Property contemplated hereby is not consummated in accordance with the terms and provisions of this Agreement due to a circumstance, condition, breach or action which constitute a default by Buyer under this Agreement (provided that such circumstance, condition, breach or action shall not constitute a default until Buyer has failed to cure such circumstance, condition, breach or action within ten (10) days after receipt by Buyer from Seller of such circumstance, condition, breach or action which Seller alleges is a default, except for Buyer's obligation to pay the Purchase Price to Seller on the Closing Date which such obligation shall have no 10-day cure period), the Earnest Money shall be delivered to and retained by Seller as Seller's full liquidated damages for such default. The parties acknowledge that Seller's actual damages in the event of a default by Buyer will be difficult to ascertain, that such liquidated damages represent the parties' best estimate of such damages, and that Seller and Buyer believe such liquidated damages are a reasonable estimate of such damages. The parties expressly acknowledge that the foregoing liquidated damages are

intended not as a penalty, but as full liquidated damages, in the event of a default. Such liquidated damages shall be the sole and exclusive remedy of Seller by reason of a default by Buyer, and Seller hereby waives and releases any right to sue Buyer for specific performance of this Agreement or to prove that Seller's actual damages exceed the amount which is herein provided to Seller as full liquidated damages; provided, however, that the foregoing liquidated damages shall not apply to any duty, obligation, liability or responsibility which Buyer may have under the indemnification provisions of Section 6 and Section 19 of this Agreement, as to which Seller shall have all rights and remedies provided for or allowed by law or in equity.

(b) Subject to Seller's right to extend the Closing Date as set forth in Section 8(d) and Section 13 hereof, if the purchase and sale of the Property contemplated hereby is not consummated in accordance with the terms and provisions of this Agreement due to a circumstance, condition, breach or action which constitute a default by Seller under this Agreement (provided that such circumstance, condition, breach or action shall not constitute a default until Seller has failed to cure such circumstance, condition, breach or action within ten (10) days after receipt by Seller from Buyer of such circumstance, condition, breach or action which Buyer alleges is a default), the Earnest Money and any Extension Fee shall be refunded to Buyer promptly upon request, and Buyer, as its sole and exclusive remedies, may exercise the following additional rights and remedies: (i) in the event of any default by Seller, Buyer shall have the right to terminate this Agreement, in which event Buyer shall be entitled to recover from Seller the Pursuit Costs in an amount not to exceed the Reimbursement Cap, and thereafter all rights and obligations of the parties under this Agreement shall expire (except for those that expressly survive termination), and this Agreement shall become null and void; or (ii) if, and only if, Seller's default is a refusal by Seller to convey the Property to Buyer as required by this Agreement, then Buyer shall have the right to sue Seller for specific performance of this Agreement, if specific performance is unavailable, then Buyer shall have the right to sue Seller to collect actual monetary damages; provided, however, that in the event that Buyer elects to seek to recover damages from Seller on account of such default under subclause (ii) above, Seller's liability to Buyer for all damages, of any nature whatsoever, shall not exceed One Hundred Fifty Thousand and 00/100 Dollars (\$150,000.00) (the "**Claim Cap**"), and Buyer shall not claim, sue for or accept an award for more than the Claim Cap on account of or in connection with this Agreement or any default by Seller under this Agreement. Buyer further agrees that, following the Closing, no claim may or shall be made for any alleged breach of any representations or warranties made by Seller or a default by Seller under or relating to this Agreement unless the amount of such claim or claims, individually or in the aggregate, exceeds Fifteen Thousand and 00/100 Dollars (\$15,000.00) (the "**Threshold Amount**") (in which event the amount of such valid claims against Seller in excess of the Threshold Amount shall be actionable up to, but not in excess of, the Claim Cap). In no event shall Buyer have the right to recover from Seller any special, punitive, exemplary, or consequential damages. Notwithstanding the foregoing, if Buyer has knowledge of a breach of any representation or warranty made by Seller in this Agreement or any condition/matter with respect to the Property prior to Closing and Buyer nevertheless elects to close the transaction described herein, such representation or warranty by Seller shall be deemed to have been modified to reflect the relevant information of which Buyer has knowledge and Buyer shall not be permitted to make a claim following Closing for a breach by Seller of such representation or warranty. Seller shall have no other liability to Buyer under this Agreement.

16. **Damage or Destruction.**

(a) If any portion of the Improvements is damaged or destroyed by casualty prior to Closing, Seller shall give Buyer prompt written notice thereof. If any portion of the Improvements is damaged or destroyed by casualty on or prior to the date that is three (3) days prior to the Due Diligence Date, and Buyer shall have (a) received written notification thereof no less than three (3) days prior to the Due Diligence Date, and (b) failed to terminate this Agreement pursuant to Section 6(b) hereof, then Buyer shall have no right to terminate this Agreement by reason of such damage or destruction. If any portion of the Improvements is damaged or destroyed by casualty after the Due Diligence Date and prior to Closing, and the cost of repair of such damage or destruction, as determined by a contractor selected by Buyer and reasonably acceptable to Seller, is reasonably estimated to exceed \$750,000 (the “**Threshold**”), Buyer shall have the right, at Buyer’s option, to terminate this Agreement by giving written notice to Seller on or before the date ten (10) days after the date upon which Seller gives Buyer written notice of such casualty, in which event the Earnest Money (but not any Extension Fee) shall be refunded to Buyer promptly upon request, all rights and obligations of the parties under this Agreement shall expire (except for those that expressly survive termination), and this Agreement shall become null and void. In the event of lesser damage or destruction after the Due Diligence Date that is not greater than the Threshold, Buyer shall have no right to terminate this Agreement by reason of such damage or destruction.

(b) If any portion of the Improvements is damaged or destroyed by casualty prior to Closing and the purchase and sale of the Property contemplated by this Agreement is thereafter actually consummated: (i) the Purchase Price shall be reduced by the total of any insurance proceeds actually received by Seller on or before the Closing Date with respect to such casualty and not expended by Seller prior to Closing for the repair or restoration of the Improvements; and (ii) at Closing, Seller shall assign to Buyer all rights of Seller in and to any insurance proceeds payable thereafter by reason of such casualty and Buyer shall receive a credit for the amount of any deductible with respect thereto.

17. **Condemnation.**

(a) In the event of commencement of eminent domain proceedings respecting any portion of the Property prior to Closing, Seller shall give Buyer prompt written notice thereof. If all or any part of the Property is taken by eminent domain proceedings, or if there is the commencement or bona fide threat of the commencement of any such proceedings, on or prior to the date that is three (3) days prior to the Due Diligence Date, and Buyer shall have (a) received written notification thereof no less than three (3) days prior to the Due Diligence Date, and (b) failed to terminate this Agreement pursuant to Section 6(b) hereof, Buyer shall have no right to terminate this Agreement by reason of such taking. If all or any material part of the Property is taken by eminent domain proceedings after the Due Diligence Date, and prior to Closing, Buyer shall have the right, at Buyer’s option, to terminate this Agreement by giving written notice to Seller on or before the day that is five (5) days after the date upon which Seller gives Buyer written notice of such taking, in which event the Earnest Money (but not any Extension Fee) shall be refunded to Buyer promptly upon request, all rights and obligations of the parties under this Agreement shall expire, and this Agreement shall become null and void. In the event of a taking

of less than all or a material part of the Property after the Due Diligence Date, Buyer shall have no right to terminate this Agreement by reason of such taking.

(b) If all or any part of the Property is taken by eminent domain proceedings prior to Closing and the purchase and sale of the Property contemplated by this Agreement is thereafter actually consummated: (i) the Purchase Price shall be reduced by the total of any awards or other proceeds actually received by Seller on or before the Closing Date with respect to any taking and not expended by Seller prior to Closing for the repair or restoration of the Property; and (ii) at Closing, Seller shall assign to Buyer all rights of Seller in and to any awards or other proceeds payable thereafter by reason of such taking.

(c) For the purposes of this Section 17, a taking shall be deemed to be of a “material” part of the Property only if such taking involves the taking of more than five percent (5%) of the Land and substantially interferes with Buyer’s contemplated use of the Property, in Buyer’s reasonable discretion.

18. **Ownership of Information; Confidentiality Obligation.**

(a) Buyer agrees that (i) any studies, data, reports, analyses, investigations, examinations, tests, inspections or writings of or with respect to the Property produced or obtained on behalf of or at the instance of Buyer or Buyer’s Agents utilizing any information acquired in whole or in part through the exercise of Buyer’s inspection rights, including information or contents of any property condition assessment or environmental reports and the results of any investigation of the Property, and (ii) all information regarding the Property of whatsoever nature made available to Buyer by Seller or its agents and representatives (collectively, the “**Confidential Information**”) shall be deemed and kept strictly confidential. The foregoing notwithstanding, “**Confidential Information**” shall not include any information that (i) at the time of disclosure is generally available to and known by the public (other than as a result of its disclosure or any action or inaction by Buyer or Buyer’s Agents in breach of this Agreement), (ii) was available to Buyer on a non-confidential basis prior to disclosure by Seller from a person who is not actually known by Buyer to be bound by a duty of confidentiality with respect thereto, or is not otherwise actually known by Buyer to be prohibited from transmitting the Confidential Information to Buyer, (iii) becomes available to Buyer on a non-confidential basis from a person who is not actually known by Buyer to be bound by a duty of confidentiality with respect thereto, or is not otherwise actually known by Buyer to be prohibited from transmitting the Confidential Information to Buyer, or (iv) was or is developed by Buyer or Buyer’s Agents independently of any disclosure made hereunder and non-derivative of, or directly or indirectly based on, any such Confidential Information. Buyer agrees not to use, or allow to be used, any such Confidential Information for any purpose other than to determine whether to proceed with the transaction contemplated herein, or if same is consummated, in connection with the operation of the Property post-closing. No Confidential Information shall be disclosed by Buyer or its agents, consultants or employees to any third party without Seller’s prior written approval, in Seller’s sole and absolute discretion, unless and until Buyer is legally compelled to make such disclosure under applicable laws or until after Closing. Notwithstanding the foregoing, Buyer may disclose such matters to Buyer’s consultants and Buyer’s directors, officers, employees, legal counsel and lenders or prospective lenders (the “**Related Parties**”, the specific identities of which shall be supplied to Seller prior to any permitted

disclosure to such party by Buyer) who, in Buyer's reasonable opinion, must know such information for the purpose of evaluating the same for Buyer as a potential purchaser of the Property. Buyer shall take all necessary actions to ensure that any Related Parties to whom such documents, items or information are furnished not make the same available or disclose the contents thereof to any person. The provisions of this Section 18(a) shall survive (1) the any termination or cancellation of this Agreement and (2) with respect to Confidential Information related to Seller, the consummation of the purchase and sale of the Property on the Closing Date.

(b) If this Agreement is terminated or cancelled for any reason other than pursuant to Sections 8(d), 13(a), 15(b), 16(a), or 17(a), Buyer shall promptly deliver to Seller, at no cost or expense to Seller: (i) a list setting forth the names of all persons or entities who conducted investigations, examinations, tests or inspections of or with respect to the Property on behalf of or at the instance of Buyer; (ii) all (1) Confidential Information and (2) reports, studies, surveys, site plans and other written or graphic material of any kind or nature whatsoever generated, collected, prepared or compiled in connection with such investigations, examinations, tests or inspections (but excluding any confidential information of the Buyer, including, but not limited to Buyer's financial and/or marketing analyses and reports) (collectively, the "**Buyer Diligence Materials**"); and (iii) an instrument in form and substance reasonably satisfactory to Seller transferring and assigning all of Buyer's rights, title and interest in or to the materials described in clause (ii) above. If this Agreement is terminated or cancelled pursuant to Sections 8(d), 13(a), 15(b), 16(a), or 17(a), (i) Buyer shall promptly deliver to Seller, at no cost or expense to Seller, or destroy all Confidential Information related to Seller or provided by Seller with respect to the Property (and if such Confidential Information is destroyed, a written certification as to the destruction of any such Confidential Information), and (ii) upon Seller's payment to Buyer of its Pursuit Costs (provided, in the case of a termination pursuant to Sections 8(d) (unless Seller extended the Closing Date pursuant to such section and failed to satisfy an objection which it has elected to cure), 16(a) or 17(a), only the Pursuit Costs related to the Buyer Diligence Materials being delivered shall be required to be paid) in an amount not to exceed the Reimbursement Cap, Buyer shall promptly deliver to Seller the Buyer Diligence Materials and an instrument in form and substance reasonably satisfactory to Buyer transferring and assigning all of Buyer's rights, title and interest in or to such Buyer Diligence Materials. Seller acknowledges and agrees that Buyer's delivery of any Buyer Diligence Materials shall be subject to the proprietary rights of any engineer or other consultant preparing the same and any disclaimers or limitations on reliance or use imposed by them and any third- party consent. Seller further understands and acknowledges that (a) Buyer makes no warranties or representations of any kind, express or implied, as to the right to rely thereon or the completeness, adequacy, truth or accuracy of the Buyer Diligence Materials, (b) Buyer expressly disclaims any liability for any and all defects or deficiencies contained in the Buyer Diligence Materials, and (iii) Seller shall accept the Buyer Diligence Materials in the "AS IS, WHERE IS" condition without recourse or liability to Buyer.

19. Broker and Commission. All negotiations relative to this Agreement and the purchase and sale of the Property as contemplated by and provided for in this Agreement have been conducted by and between Seller and Buyer without the intervention of any person or other party as agent or broker, with the exception of Broker (as defined below). Seller and Buyer warrant and represent to each other that, other than with regard to Cushman & Wakefield U.S., Inc. ("**Seller's Broker**") and BBI Real Estate Brokerage, LLC ("**Buyer's Broker**," and together with Buyer's

Broker, the “**Broker**”), Seller and Buyer have not entered into any agreement or arrangement and have not received services from any broker or broker’s employees or independent contractors which would give rise to any claim of lien or lien against the Property, and there are and will be no broker’s commissions or fees payable in connection with this Agreement or the purchase and sale of the Property by reason of their respective dealings, negotiations or communications except the commission payable by Seller to Seller’s Broker at Closing, and the commission payable by Buyer to Buyer’s Broker at Closing, each pursuant to a separate written agreement between the applicable parties. Seller and Buyer shall and do each hereby indemnify, defend and hold harmless each of the others from and against any and all liabilities, damages, losses, costs and expenses (including attorneys’ fees and expenses) in any manner arising out of, by reason of or in connection with the claims, demands, actions and judgments of any and all brokers, agents and other intermediaries alleging a commission, fee or other payment to be owing by reason of their respective dealings, negotiations or communications in connection with this Agreement or the purchase and sale of the Property.

20. **Survival.** The provisions of Section 7, Section 11 and Section 18 (to the extent set forth in such Section 18) of this Agreement shall survive the consummation of the purchase and sale of the Property on the Closing Date, the delivery of the deed and the payment of the Purchase Price. The provisions of Section 14 and the indemnification provisions of Section 19 of this Agreement shall survive the consummation of the purchase and sale of the Property on the Closing Date, the delivery of the deed and the payment of the Purchase Price for a period of four (4) months thereafter. Notwithstanding anything to the contrary set forth in this Agreement, the provisions of clauses (1), (2) and (3) of Section 6(a), Section 6(d), Section 6(e), Section 15, and Section 18 of this Agreement shall also survive any termination or cancellation of this Agreement in accordance with its terms. Except as expressly set forth in this Section 20, this Agreement shall **not** survive the consummation of the purchase and sale of the Property on the Closing Date, the delivery of the deed and the payment of the Purchase Price.

21. **Seller’s Tax Deferred Exchange.** Buyer may acquire the Property or any portion thereof or interest therein as part of one or more Internal Revenue Code Section 1031 Tax Deferred Exchanges for its benefit. Seller agrees to assist and cooperate in any such exchange and to execute any and all documents as are reasonably necessary in connection with any such exchange, provided that Seller shall not be obligated to incur any cost or expense in connection with any such exchange. Seller’s obligation to sell the Property, and Buyer’s obligation to buy the Property, pursuant to this Agreement, shall not be conditioned on Buyer’s ability to acquire the property as part of a Tax Deferred Exchange. Buyer acknowledges that Seller may desire to sell the Property as part of one or more Internal Revenue Code Section 1031 Tax Deferred Exchanges for its benefit. Buyer agrees to assist and cooperate in any such exchange and to execute any and all documents as are reasonably necessary in connection with any such exchange, provided that Buyer shall not be obligated to incur any cost or expense in connection with any such exchange.

22. **General Provisions.**

(a) **Notices.** Whenever any notice, demand or request is required or permitted under this Agreement, such notice, demand or request shall be in writing and shall be either (i) delivered by hand or be sent by nationally recognized commercial courier for next business day

delivery, to the addresses set forth below their respective executions hereof, or to such other addresses as are specified by written notice given in accordance herewith, or (ii) be transmitted by electronic mail to the electronic mail addresses for each party set forth below their respective executions hereof, or to such other numbers as are specified by written notice given in accordance herewith. All notices, demands or requests delivered by hand shall be deemed given upon the date so delivered; those given by commercial courier as hereinabove provided shall be deemed given on the date of deposit with the commercial courier; and those given by electronic mail shall be deemed given on the date of electronic mail transmittal. Nonetheless, the time period, if any, in which a response to any notice, demand or request must be given shall commence to run from the date of receipt of the notice, demand or request by the addressee thereof. Any notice, demand or request not received because of changed address or electronic mail address of which no notice was given as hereinabove provided or because of refusal to accept delivery shall be deemed received by the party to whom addressed on the date of hand delivery, on the first calendar day after deposit with commercial courier, or on the date of electronic mail transmittal, as the case may be.

(b) **Counterparts; PDF as a Writing.** This Agreement may be executed in any number of counterparts, and it shall not be necessary that the signatures of the parties hereto be contained on any one counterpart hereof. Additionally: (i) the signature pages taken from separate individually executed counterparts of this Agreement may be combined to form multiple fully executed counterparts; and (ii) electronic delivery of signature (i.e., transmission by any party of its signature on an original or any copy of this Agreement by electronic mail over the internet in electronic format (e.g., so-called “PDF” or “portable document format”)) shall be deemed to be the delivery by such party of its original signature hereon. All executed counterparts of this Agreement shall be deemed to be originals, but all such counterparts, taken together or collectively, as the case may be, shall constitute one and the same instrument. Notwithstanding any statutory or decisional law to the contrary, notices and documents delivered by electronic delivery (i.e., transmission by electronic mail over the internet in electronic format (e.g., so-called “PDF” or “portable document format”)) shall be deemed to be “written” and a “writing” for all purposes of this Agreement.

(c) **Assignment.** This Agreement may be assigned by Buyer to any entity that is majority owned and controlled, directly or indirectly, by Brent Bosse, provided that (i) Buyer shall notify Seller in writing prior to any such assignment, (ii) the assignee shall assume all of Buyer’s obligations under this Agreement by written instrument reasonably satisfactory to Seller, and (iii) such assignment is for a valid business purpose and not to circumvent any obligations under, or provisions of, this Agreement. Except as expressly permitted pursuant to the preceding sentence, Buyer shall not assign this Agreement, in whole or in part, without the prior written consent of Seller, and any such assignment without the consent of Seller shall be null and void and of no force or effect. Subject to the foregoing, this Agreement shall be binding upon and enforceable against, and shall inure to the benefit of, Buyer and Seller and their respective members, legal representatives, successors and permitted assigns. No assignment shall relieve Buyer of liability for the performance of Buyer’s duties and obligations under this Agreement.

(d) **Headings.** The use of headings, captions and numbers in this Agreement is solely for the convenience of identifying and indexing the various provisions in this Agreement and shall in no event be considered otherwise in construing or interpreting any provision in this Agreement.

(e) **Exhibits.** Each and every exhibit referred to or otherwise mentioned in this Agreement is attached to this Agreement and is and shall be construed to be made a part of this Agreement by such reference or other mention at each point at which such reference or other mention occurs, in the same manner and with the same effect as if each exhibit were set forth in full and at length every time it is referred to or otherwise mentioned.

(f) **Defined Terms.** Capitalized terms used in this Agreement shall have the meanings ascribed to them at the point where first defined, irrespective of where their use occurs, with the same effect as if the definitions of such terms were set forth in full and at length every time such terms are used.

(g) **Pronouns.** Wherever appropriate in this Agreement, personal pronouns shall be deemed to include the other genders and the singular to include the plural.

(h) **Severability.** If any term, covenant, condition or provision of this Agreement, or the application thereof to any person or circumstance, shall ever be held to be invalid or unenforceable, then in each such event the remainder of this Agreement or the application of such term, covenant, condition or provision to any other person or any other circumstance (other than those as to which it shall be invalid or unenforceable) shall not be thereby affected, and each term, covenant, condition and provision hereof shall remain valid and enforceable to the fullest extent permitted by law.

(i) **Non-Waiver.** Failure by any party to complain of any action, non-action or breach of any other party shall not constitute a waiver of any aggrieved party's rights hereunder. Waiver by any party of any right arising from any breach of any other party shall not constitute a waiver of any other right arising from a subsequent breach of the same obligation or for any other default, past, present or future.

(j) **Time of Essence; Dates.** Time is of the essence of this Agreement. Anywhere a day certain is stated for payment or for performance of any obligation, the day certain so stated enters into and becomes a part of the consideration for this Agreement. If any date set forth in this Agreement shall fall on, or any time period set forth in this Agreement shall expire on, a day which is a Saturday, Sunday, federal or state holiday, or other non-business day, such date shall automatically be extended to, and the expiration of such time period shall automatically be extended to, the next day which is not a Saturday, Sunday, federal or state holiday or other non-business day. The final day of any time period under this Agreement or any deadline under this Agreement shall be the specified day or date, and shall include the period of time through and including such specified day or date.

(k) **Applicable Law; Dispute Resolution.** This Agreement shall be governed by, construed under and interpreted and enforced in accordance with the laws of the State of Ohio, without regard to its choice of law provisions. The Parties hereby consent to the resolution of any and all disputes arising under this Agreement through the court of applicable jurisdiction located in Franklin County, Ohio.

(l) **Entire Agreement; Modification.** This Agreement supersedes all prior discussions and agreements among Seller and Buyer with respect to the purchase and sale of the Property and other matters contained herein, including but not limited to that certain Access and Indemnity Agreement entered into by and between the Parties on January 13, 2026, and this Agreement contains the sole and entire understanding among Seller and Buyer with respect thereto. This Agreement shall not be modified or amended except by an instrument in writing executed by or on behalf of Seller and Buyer.

(m) **Attorney's Fees.** In the event of any litigation between Buyer and Seller arising under or in connection with this Agreement, the prevailing party shall be entitled to recover from the other party the expenses of litigation (including reasonable attorneys' fees, expenses and disbursements) incurred by the prevailing party.

(n) **Authority.** Each party hereto warrants and represents that such party has full and complete authority to enter into this Agreement and each person executing this Agreement on behalf of a party warrants and represents that he has been fully authorized to execute this Agreement on behalf of such party and that such party is bound by the signature of such representative.

(o) **Counsel.** Each party hereto warrants and represents that each party has been afforded the opportunity to be represented by counsel of its choice in connection with the execution of this Agreement and has had ample opportunity to read, review, and understand the provisions of this Agreement.

(p) **No Construction Against Preparer.** No provision of this Agreement shall be construed against or interpreted to the disadvantage of any party by any court or other governmental or judicial authority by reason of such party's having or being deemed to have prepared or imposed such provision.

(q) **No Lien.** This Agreement is not and shall not be deemed or considered to convey or be an interest in or lien against the Property.

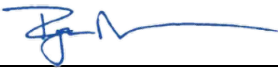
(r) **No Recording.** In no event shall this Agreement or any memorandum hereof be recorded by Buyer in any public records, and any such recordation or attempted recordation shall constitute a breach of this Agreement by Buyer.

[SIGNATURES BEGIN ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties have caused their duly authorized representatives to execute, seal and deliver this Agreement, all as of the Effective Date.

SELLER:

SFG ISF COLUMBUS WILLIAMS, LLC,
Delaware limited liability company

By: 
Name: Ryan Meehan
Title: Vice President

Initial address for notices:

Stonemont Financial Group
Three Alliance Center
3550 Lenox Road, Suite 1700
Atlanta, Georgia 30326
Attention: General Counsel
Email: ryan.meehan@stonemontfinancial.com
and mike.patel@stonemontfinancial.com

With a copy to:

Jones Day
1221 Peachtree Street, N.E., Suite 400
Atlanta, Georgia 30361
Attention: Richard M. Rosenblatt, Esq.
Email: rmrosenblatt@jonesday.com

[SIGNATURES CONTINUE ON FOLLOWING PAGE]

BUYER:

BBI REAL ESTATE HOLDINGS, LLC,
an Ohio limited liability company

By: Brent Bosse
Name: Brent Bosse
Title: Manager

Initial address for notices:

BBI Real Estate Holdings, LLC
600 West Nationwide Boulevard
Columbus, Ohio 43215
Attention: Brent Bosse
Telephone: (614) 927-1200 x401
Email: bbosse@bbilogistics.com

With a copy to:

Saad & Saad LLP
500 South Front Street, Suite 250
Columbus, Ohio 43215
Attention: Jonah White
Telephone: (614) 641-2369
Email: jwhite@saad-startitle.com

[END OF SIGNATURES]

EXHIBITS

- A. Legal Description of the Land
- B. Personalty
- C. Leases
- D. Vendor Contracts
- E. Escrow Instructions
- F. Form of Limited Warranty Deed
- G. Form of Bill of Sale and General Assignment
- H. Form of Assignment
- I. Form of Seller's Affidavit
- J. Due Diligence Materials

EXHIBIT A

Description of the Land

Parcel 1: 10.939 Acres

Situated in the State of Ohio, County of Franklin, and in the Village of Obetz:

Being part of the Northwest Quarter of Section 13, Township 4, Range 22, Matthew's Survey and being part of that tract deeded by John F. Hensel, deceased, to Lillie M. Hensel, et al. As shown of record in Deed Book 1189, page 32, Recorder's Office, Franklin County, Ohio, and being more particularly described as follows:

Beginning at a spike in the north line of Section 13 at the northeast corner of a 30 acre tract formerly deeded to Henry Obetz and shown of record in Deed Book 85, page 398, said point being also the northwest corner of the above mentioned tract deeded to Lillie M. Hensel;

thence from said Beginning Point, S. 88° 31' E. with the north line of Section 13, 126.7 ft. to a spike;

thence with the meanders of a county ditch the following courses: S. 0° 13' W. 602 ft., S. 20° 14' E. 89.34 ft., S. 75° 48' E. 77.33 ft., S. 29° 23' E., 144.31 ft., S. 58° 29' E. 134.63 ft., S. 43° 25' E. 200 ft., S. 31° 42' E. 206.73 ft., S. 31° 28' E. 180.86 ft. and S 16° 06' E. 180.4 ft. to a point where the ditch intersects the north right-of-way line of the C&O Railroad;

thence with said right-of-way line, N. 70° 07' W. 894.93 ft. to an iron pin at the southwest corner of the above mentioned tract deeded to Lillie M. Hensel; thence with the west line of said tract, N. 1° 37' E. 1249.1 ft. to the Place Of Beginning Containing 10.939 acres.

Parcel 2: 2.000 Acres

SITUATED IN THE STATE OF OHIO, COUNTY OF FRANKLIN, VILLAGE OF OBETZ, Hamilton Township, Part of the N.E. Quarter of Section 13, Twp. 4N, Range 22W, Congress Lands, and being 2.000 Acres out of an original 16.856 Acre tract conveyed to LOUIS F. VARGA ETAL (Parcel #153-000673), shown in Instr. #200302250054669 and being more particularly described as follows:

Beginning at FCGS Monument #8819, found on the C/L of Williams Road, (County Road 123), (R/W Varies in width), (See Road Record 8, Pg. 21) and being at the N.W. corner of the aforementioned quarter section 13, thence;

S 86° 05' 07" E a distance of 411.13 feet with the center of Williams Road and being the north line of said 16.856 acres to a set P.K. Nail, said nail being the northwest corner 0.509 acre tract conveyed to CARLA J VARGA & VIKKI SCHULMAN & KURT V VARGA, (PARCEL #153-000048), shown in O.R. 34150 H06, thence;

S 03° 56' 34" W a distance of 614.44 feet with the west line of said 0.509 acres and also the west line of a 8.437 acre tract conveyed to CARLA VARGA ETAL, (PARCEL #153-000013), INSTR. #200302250054672, to a set I.P. in an existing Bean Field (said I.P. to be set at a later date), thence;

S 86° 03' 26" E a distance of 490.34 feet with the south line of said 8.437 acres to a set I.P., said I.P. being the TRUE PLACE OF BEGINNING for this legal description, thence;

S 86° 03' 26" E a distance of 142.90 feet continuing with said south line to a found capped I.P. (stamped Haines Surveying), said I.P. being on the west line of a 10.939 acre tract, conveyed to DBT PROPERTIES LLC, (PARCEL #153-000007), shown in INSTR. #200011290241468, thence;

S 04° 04' 53" W a distance of 633.23 feet with the west line of said 10.939 acres to a found 3/4" I.P, (IRON PIPE) on the northern R/W of a 100' wide Railway conveyed to CSX TRANSPORTATION INC. (9.75 acres), shown in D.B. 924, Pg. 338, thence;

N 67° 42' 38" W a distance of 150.43 feet with the north line of said Railway to a set I.P., thence;

N 04° 04' 53" E a distance of 585.88 feet with a new line through said 16.856 acres returning to the TRUE PLACE OF BEGINNING and containing 2.000 ACRES more or less, subject however to all legal easements and rights-of-way of record.

Capped I.P.'s set are 5/8" rebar 30 inches long with a Red Cap stamped (8067).

RAILWAY NOTE:

CSX Transportation Inc. successor by merger of the Chesapeake Railway as Recorded in O.R. 13276 A14 as conveyed to the Hocking Valley Railway Company in D.B. 924, Pg. 338 as originally partitioned in D.B. 467, Pg. 363 and by the Franklin County Probate Court as filed in BK 5, Pg. 481.

BASIS OF BEARING:

Bearings are based on the Ohio State Plane coordinate system (S. Zone) NAD 83 (1986 adjustment), based on the center of Williams Rd. as being S 86° 05' 07" E between Franklin County Monument's 8819 and 8820 as shown on a Centerline Survey Plot (Drawing #0123-04), created by the Franklin County Engineer's Office dated 12/02/1999.

This description was prepared from records on file at the Recorder's Office, and the Engineer's Office, Franklin County, Ohio and from an actual Field Survey performed under the direct supervision of Timothy A. Ericsson, P.S. #8067 on 07/28/2010 and this description is True and Correct to the best of my knowledge.

PPN: 153-000007-00
1277 Williams Road, Obetz, Ohio 43207

EXHIBIT B

Personalty

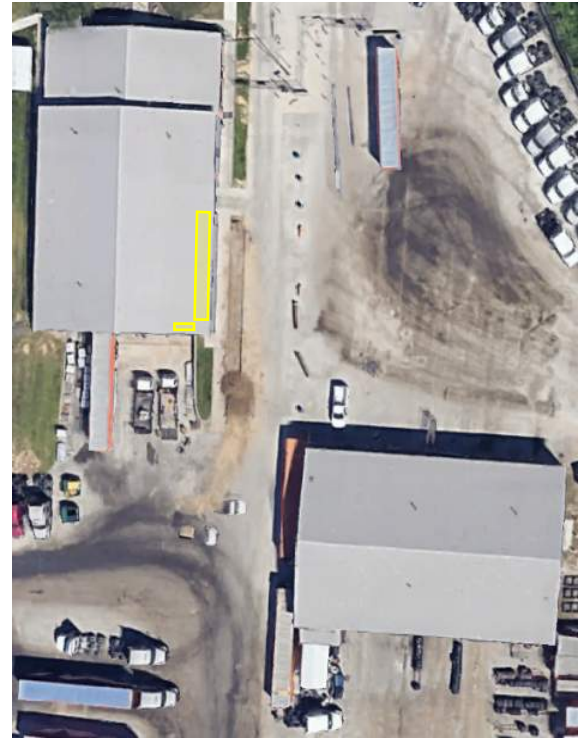
[See attached]

BBI TRANSPORTATION



BBI TRANSPOR/SMITH SPRINGS
2177 WILLIAMS RD. TRANSPOR HUB
GARAGE/WAREHOUSE
EXISTING INVENTORY COORDINATION

RACKING IN WAREHOUSE PIC 1

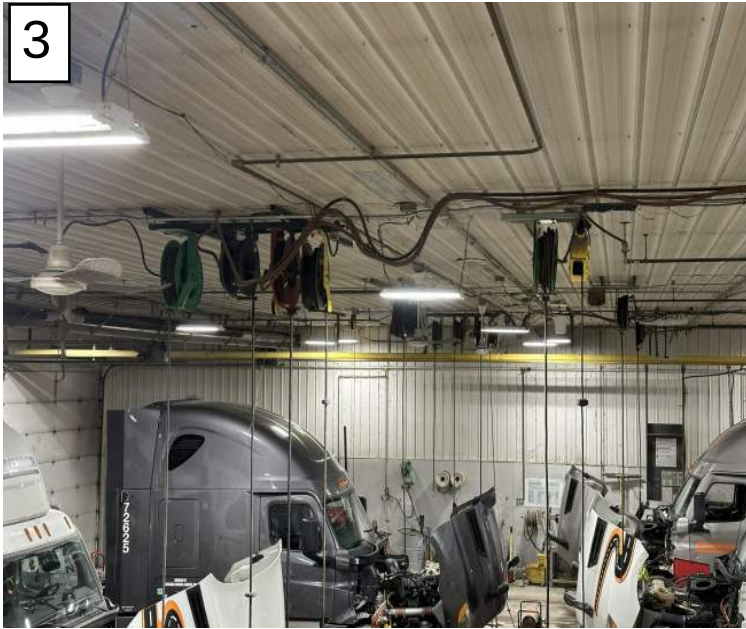


RACKING IN WAREHOUSE PIC 2

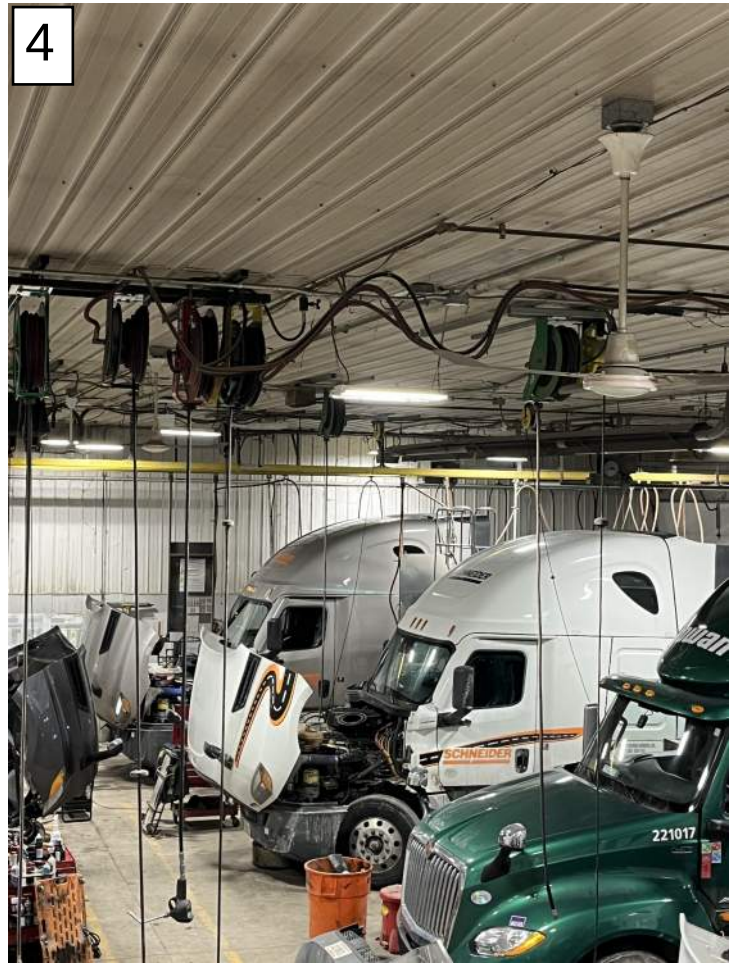


GARAGE HOSE REELS: WALL
AND CEILING MOUNTED
ELECTRIC, AIR, GREESE, MIN.

3



4



5

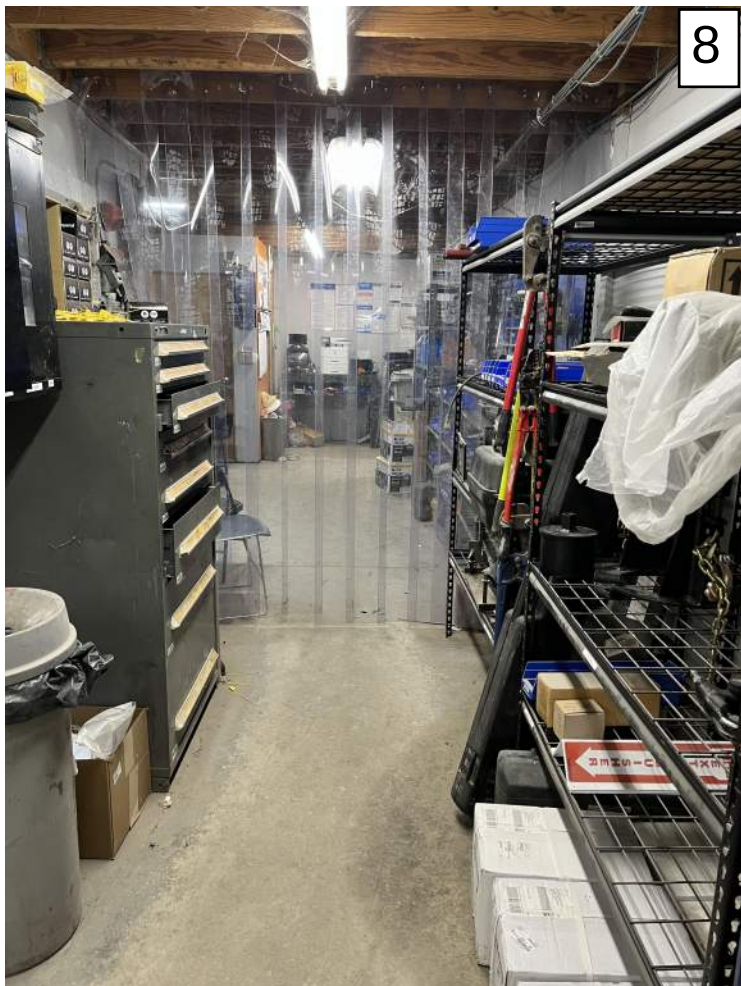


6





GARAGE STANDARD SHELVING



GARAGE STANDARD SHELVING





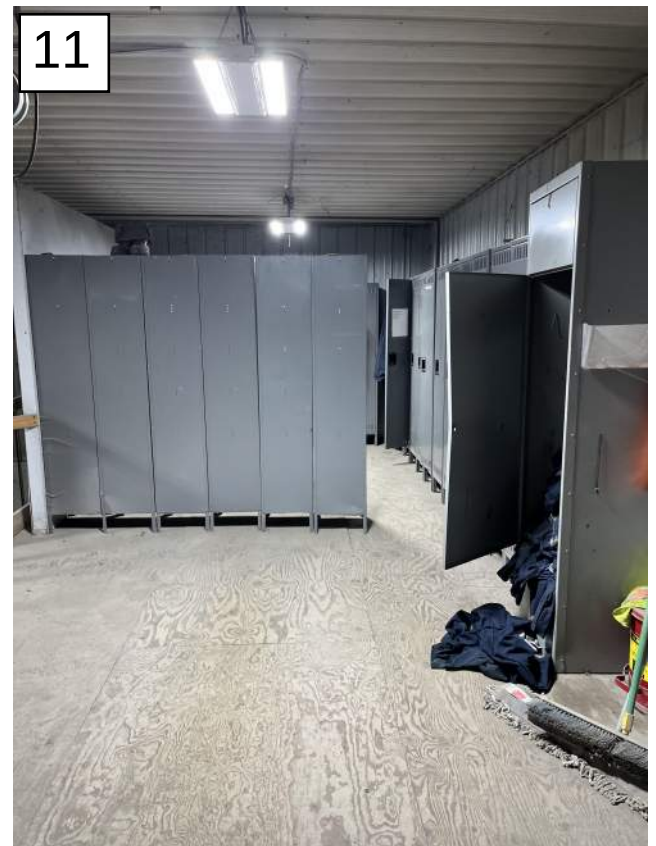
9

GARAGE LIGHT DUTY RACKING



10

LOCKERS AT GARAGE
MEZZANINE



11

12



GARAGE AIR COMPRESSOR



13



14



BBI TRANSPORTATION



BBI TRANSP/SMITH SPRINGS
2177 WILLIAMS RD. TRANSP HUB
OFFICE
EXISTING INVENTORY COORDINATION

15



NORTH OFFICE DESKS-CHAIRS-FILING CABS

15



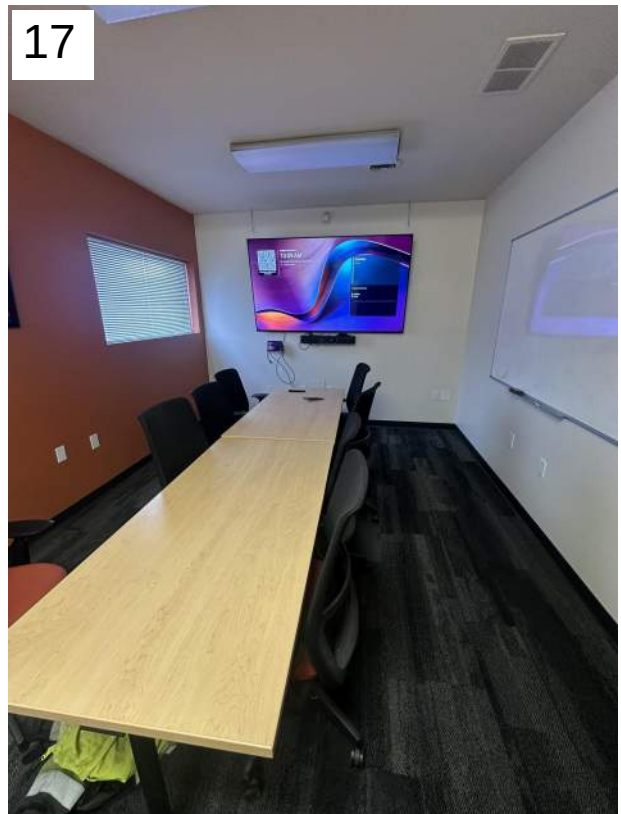
MEETING ROOM TABLE-CHAIRS

16

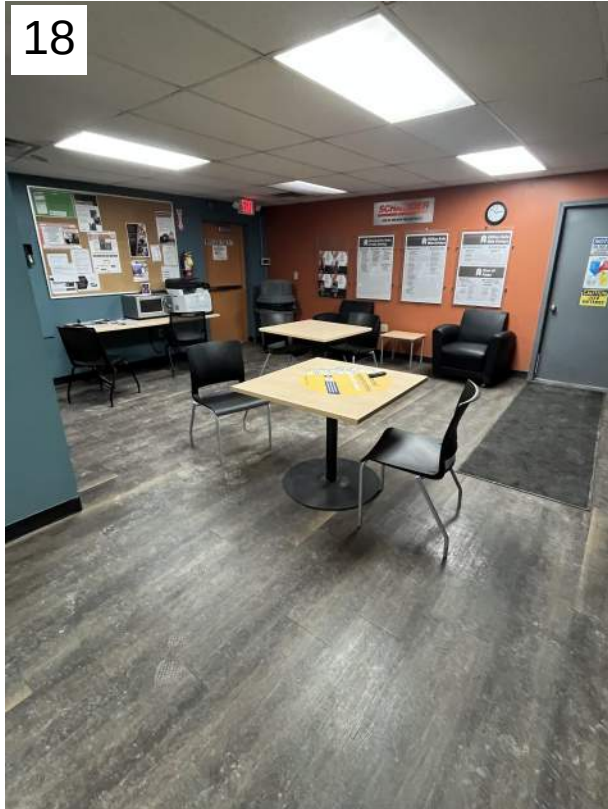


CONFERENCE ROOM TABLE ONLY

17



DRIVERS LOUNGE TABLES-CHAIRS

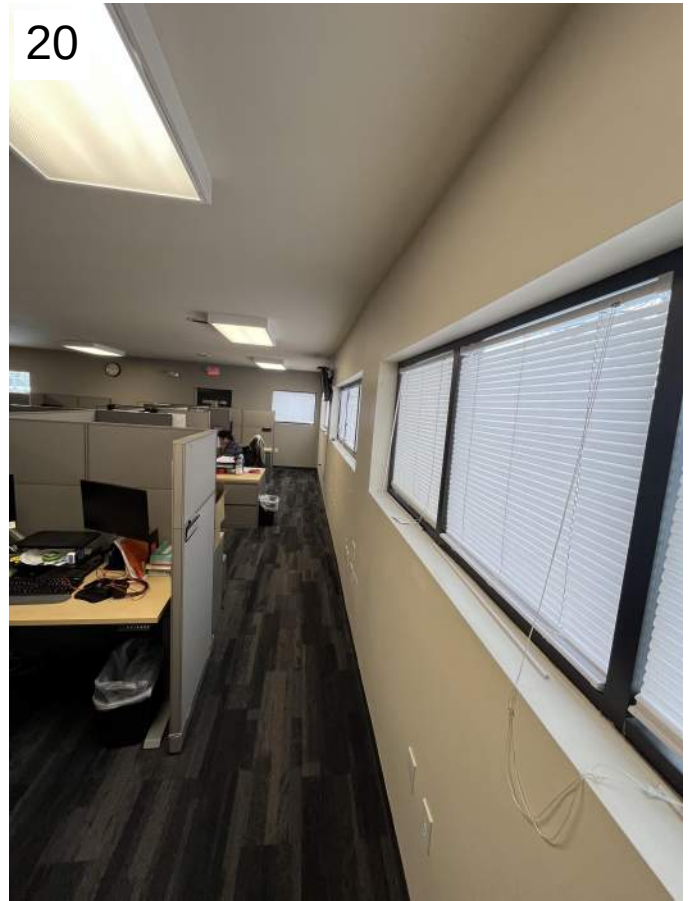


ICE MACHINE



MAIN OFFICE DESKS-CHAIRS-LOWER
FILING CABINETS

20



20



20

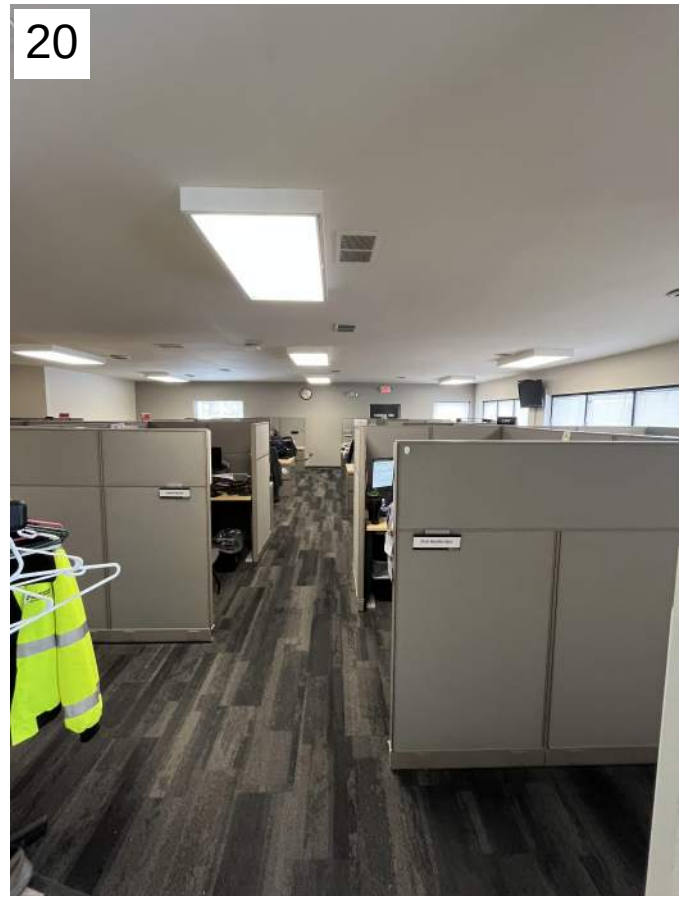


EXHIBIT C

Leases

1. Lease Agreement dated May 19, 2010, by and between Schneider Resources, Inc. and Seller (as successor in interest to DBT Properties, LLC), as amended by:
 - a. Addendum to Lease Agreement dated June 2, 2010;
 - b. Second Addendum to Lease Agreement dated June 29, 2010;
 - c. Third Addendum to Lease Agreement dated September 1, 2010;
 - d. Fourth Addendum to Lease Agreement dated November 30, 2010;
 - e. Fifth Addendum to Lease Agreement dated November 19, 2019;
 - f. Sixth Addendum to Lease Agreement dated January 30, 2020;
 - g. Seventh Addendum to Lease dated October 28, 2020; and
 - h. Eighth Amendment to Lease dated November 19, 2025.

EXHIBIT D
Vendor Contracts

None.

EXHIBIT E

Escrow Instructions

1. **Investment of Earnest Money.** Escrow Agent shall deposit the Earnest Money held by Escrow Agent pursuant to Buyer's directions in an interest bearing account at a commercial bank whose deposits are insured by the Federal Deposit Insurance Corporation. Escrow Agent shall notify Seller, no later than one (1) business day after Escrow Agent's receipt thereof, that Escrow Agent has received any portion of the Earnest Money in immediately available funds and is holding the same in accordance with the terms of this Agreement. However, Escrow Agent shall deposit the Earnest Money only in such account as will allow Escrow Agent to disburse the Earnest Money or any portion thereof upon no more than one (1) business day's notice.

2. **Payment on Demand.** Upon receipt of any written certification from Seller or Buyer claiming the Earnest Money pursuant to the provisions of this Agreement, Escrow Agent shall promptly forward a copy thereof to the other such party (i.e., Buyer or Seller, whichever did not claim the Earnest Money pursuant to such notice) and, unless such other party within ten (10) days thereafter notifies Escrow Agent of any objection to such requested disbursement of the Earnest Money in which case Escrow Agent shall retain the Earnest Money subject to Section 4 below, Escrow Agent shall disburse the Earnest Money to the party demanding the same and shall thereupon be released and discharged from any further duty or obligation hereunder.

3. **Exculpation of Escrow Agent.** It is agreed that the duties of Escrow Agent are herein specifically provided and are purely ministerial in nature, and that Escrow Agent shall incur no liability whatsoever except for its misconduct or negligence, so long as Escrow Agent is acting in good faith and in accordance with the terms and conditions of this Agreement. Except in the event of Escrow Agent's willful misconduct or gross negligence, Seller and Buyer do each hereby release Escrow Agent from any liability for any error of judgment or for any act done or omitted to be done by Escrow Agent in the good faith performance of its duties hereunder and do each hereby indemnify Escrow Agent against, and agree to hold, save, and defend Escrow Agent harmless from, any costs, liabilities, and expenses incurred by Escrow Agent in serving as Escrow Agent hereunder and in faithfully discharging its duties and obligations hereunder.

4. **Stakeholder.** Escrow Agent is acting as a stakeholder only with respect to the Earnest Money. If there is any dispute as to whether Escrow Agent is obligated to deliver the Earnest Money or as to whom the Earnest Money is to be delivered, Escrow Agent may refuse to make any delivery and may continue to hold the Earnest Money until receipt by Escrow Agent of an authorization in writing, signed by Seller and Buyer, directing the disposition of the Earnest Money, or, in the absence of such written authorization, until final determination of the rights of the parties in an appropriate judicial proceeding. If such written authorization is not given, or a proceeding for such determination is not begun, within thirty (30) days of notice to Escrow Agent of such dispute, Escrow Agent may bring an appropriate action or proceeding for leave to deposit the Earnest Money in a court of competent jurisdiction located in the Atlanta, Georgia metropolitan

area pending such determination. Escrow Agent shall be reimbursed for all costs and expenses of such action or proceeding, including, without limitation, reasonable attorneys' fees and disbursements, by the party determined not to be entitled to the Earnest Money. Upon making delivery of the Earnest Money in any of the manners herein provided, Escrow Agent shall have no further liability or obligation hereunder.

5. **Interest.** All interest and other income earned on the Earnest Money deposited with Escrow Agent hereunder shall be reported for income tax purposes as earnings of Buyer. Buyer's taxpayer identification number shall be delivered to Escrow Agent and/or Seller upon request prior to Closing.

6. **Execution by Escrow Agent.** Escrow Agent has executed these Instructions solely for the purpose of acknowledging and agreeing to the provisions herein. Escrow Agent's consent to any modification or amendment of this Agreement other than these Instructions shall not be required.

[SIGNATURE PAGE FOLLOWS.]

[SIGNATURE PAGE TO ESCROW INSTRUCTIONS]

ESCROW AGENT:

**FIDELITY NATIONAL TITLE INSURANCE
COMPANY**



By: _____

Name: Leslie Flowers

Title: VP

Date: February 23, 2026

EXHIBIT F

Form of Limited Warranty Deed

LIMITED WARRANTY DEED

SFG ISF COLUMBUS WILLIAMS, LLC, a Delaware limited liability company (“Grantor”), for valuable consideration paid, grants with limited warranty covenants to BBI REAL ESTATE HOLDINGS, LLC, an Ohio limited liability company (the “Grantee”), whose tax mailing address is _____, the following **REAL PROPERTY**:
Situating in the State of Ohio, County of Franklin, City of Obetz.

SEE EXHIBIT “A” ATTACHED HERETO AND MADE A PART HEREOF

Parcel No(s): _____

Street address of property: 2177 Williams Road, Obetz, Ohio 43125

[Prior instrument reference: _____]

The foregoing conveyance is made subject to any and all real estate taxes and assessments not yet due and payable, zoning ordinances, legal highways and covenants, restrictions, conditions and easements of record, if any.

[Signature Page Follows]

IN WITNESS WHEREOF, Grantor has caused this instrument to be executed by its duly authorized _____ this _____ day of _____, 2026.

GRANTOR:

SFG ISF COLUMBUS WILLIAMS, LLC,
a Delaware limited liability company

By: _____
Name: _____
Title: _____

STATE OF _____,
COUNTY OF _____, SS:

The foregoing instrument was acknowledged before me this ____ day of _____, by _____, the _____ of _____. No oath or affirmation was administered to the signer with regard to the notarial act.

Notary Public
Commission Expiration: _____

This instrument was prepared by:

EXHIBIT “A”

Legal Description

[to be inserted]

EXHIBIT G

Form of Bill of Sale

BILL OF SALE

KNOW ALL MEN BY THESE PRESENTS, that **SFG ISF COLUMBUS WILLIAMS, LLC**, a Delaware limited liability company (the “**Seller**”), for and in consideration of TEN DOLLARS (\$10.00) and other good and valuable consideration paid by **BBI REAL ESTATE HOLDINGS, LLC**, an Ohio limited liability company (the “**Buyer**”), the receipt and sufficiency of which is hereby acknowledged, hereby quitclaims unto Buyer, its successors and assigns, from and after the date hereof, all of Seller’s right, title and interest in and to all personal property owned by Seller and located in or used in connection with the ownership, use or operation of the real property commonly known as 2177 Williams Road, Obetz, Ohio 43125 (“**Premises**”) including, without limitation, all goods, equipment, machinery, apparatus, fittings, furniture, furnishings and other personal property owned by Seller and located on the Premises and used in connection with the operation, management or maintenance of the Premises (collectively, “**Tangible Property**”), excluding, however, any such fixtures, machinery, equipment and articles of personal property and improvements in the nature of personal property belonging to any tenant on the Premises.

TO HAVE AND TO HOLD THE SAME unto Buyer, its successors and assigns, forever.

SUCH TANGIBLE PROPERTY IS HEREBY TRANSFERRED FROM SELLER TO BUYER IN ITS “AS-IS” CONDITION, WITHOUT ANY REPRESENTATIONS OR WARRANTIES, EXPRESS, IMPLIED OR STATUTORY, OF ANY KIND WHATSOEVER BY SELLER. WITHOUT LIMITING THE GENERALITY OF THE FOREGOING, BY BUYER’S ACCEPTANCE OF THIS BILL OF SALE AND GENERAL ASSIGNMENT, BUYER ACKNOWLEDGES THAT SELLER EXPRESSLY DISCLAIMS AND NEGATES, AS TO ALL TANGIBLE PROPERTY TRANSFERRED HEREBY: (A) ANY IMPLIED OR EXPRESS WARRANTY OF MERCHANTABILITY; AND (B) ANY IMPLIED OR EXPRESS WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE.

[SIGNATURE ON FOLLOWING PAGE]

IN WITNESS WHEREOF, Seller has executed this Bill of Sale and General Assignment
this ____ day of _____, 2026.

SELLER:

SFG ISF COLUMBUS WILLIAMS, LLC,
a Delaware limited liability company

By: _____
Name: _____
Its: _____

EXHIBIT H

Form of Assignment

THIS ASSIGNMENT AND ASSUMPTION OF CONTRACTS (this “Assignment”), is made as of the ____ day of _____, 2026 (the “Effective Date”), by and between **SFG ISF COLUMBUS WILLIAMS, LLC**, a Delaware limited liability company having an address at 3280 Peachtree Road NE, Suite 2770, Atlanta, Georgia 30305, as assignor (“Assignor”), and [____], a [____] having an address at [____], as assignee (“Assignee”).

WITNESSETH:

WHEREAS, Assignor is party to certain contracts (the “Contracts”) with the parties set forth on **Exhibit “A”** attached hereto and made a part hereof, pursuant to which Contracts Assignor has entered into certain agreements regarding the provision of certain services and the supply of certain goods to the property particularly described in **Exhibit “B”** attached hereto (the “Property”), as further described therein;

WHEREAS, Assignor and Assignee, are parties to that certain Purchase and Sale Agreement, dated as of [____], 2026 (the “Purchase Agreement”), pursuant to which Assignor has agreed to sell to Assignee, and Assignee has agreed to purchase from Assignor, the Property;

WHEREAS, in connection with the Purchase Agreement: (a) Assignor is required to assign, transfer and convey to the purchaser thereunder all of Assignor’s right, title and interest in, to and under the Contracts and (b) Assignee is required to accept such assignment and to assume Assignor’s obligations under the Contracts from and after the Effective Date; and

WHEREAS, Assignee and Assignor are consummating the transactions set forth in the Purchase Agreement on the Effective Date.

NOW, THEREFORE, in consideration of the sum of Ten and 00/100 Dollars (\$10.00) and other good and valuable consideration, the mutual receipt and sufficiency of which are hereby acknowledged, the parties hereto do hereby agree as follows:

1. Unless otherwise stated herein, all capitalized terms used in this Assignment shall have the meanings specified in the Purchase Agreement.

2. Subject to the terms of the Purchase Agreement, Assignor hereby assigns, transfers, releases, and sets over unto Assignee all of its right, title, and interest in, to, and under the Contracts.

3. Assignee hereby accepts the foregoing assignment and hereby assumes all of the obligations of Assignor under the Contracts from and after the Effective Date.

4. Assignor hereby indemnifies and holds Assignee harmless from and against any and all claims, expenses, costs, obligations or other liabilities with respect to the Contracts, arising or incurred after the Effective Date with respect to events occurring prior to the Effective Date. The foregoing indemnification obligation shall survive the delivery of this instrument for a period of four (4) months and any claim not made within such four (4) month period shall be deemed waived by Assignee.

5. Assignee hereby indemnifies and holds Assignor harmless from and against any and all claims, expenses, costs, obligations, or other liabilities with respect to the Contracts, arising or incurred on or after the Effective Date with respect to events occurring on or after the Effective Date. The foregoing indemnification obligation shall survive the delivery of this instrument indefinitely.

6. This Assignment may not be amended, modified, or terminated except by an instrument in writing executed by the parties hereto.

7. This Assignment shall be binding upon and shall inure to the benefit of the parties hereto and their respective successors and assigns.

8. This Assignment may be executed in counterparts, each of which shall constitute an original, and all of which taken together shall constitute one and the same instrument.

[SIGNATURE PAGES FOLLOW.]

IN WITNESS WHEREOF, the parties have caused their duly authorized representatives to execute, seal and deliver this Assignment, all as of the Effective Date.

ASSIGNOR:

SFG ISF COLUMBUS WILLIAMS, LLC,
a Delaware limited liability company

By: _____
Name: Ryan Meehan
Title: Vice President

[SIGNATURES CONTINUE ON FOLLOWING PAGE.]

ASSIGNEE:

BBI REAL ESTATE HOLDINGS, LLC,
an Ohio limited liability company

By: _____
Name: _____
Title: _____

[END OF SIGNATURES.]

EXHIBIT A

Contracts

None.

EXHIBIT B

Legal Description of Property

[To be inserted.]

EXHIBIT I

Form of Seller's Affidavit

STATE OF GEORGIA
COUNTY OF _____

On this day personally appeared before me, the undersigned authority, _____ ("Deponent"), of **SFG ISF COLUMBUS WILLIAMS, LLC**, a Delaware limited liability company (the "Seller"), who being first duly sworn, deposes and says:

1. That, to Seller's knowledge, the Seller is the owner of the property legally described in Exhibit A, attached hereto (the "Property"), and Deponent is the _____ of Seller, and as such is familiar with the matters set forth herein and is authorized to make this affidavit.

2. That, to Seller's knowledge, the Property is free and clear of any encumbrances or any security deeds, mortgages, restrictions, easements, claims of easements, encroachments, ways or rights of use, whether existing of record or otherwise, that could in any way affect the title to the Property, or constitute a lien thereon, except for those matters listed on Exhibit B, which is attached hereto and incorporated herein by this reference.

3. That, to Seller's knowledge, there is no outstanding indebtedness for equipment, appliances or other fixtures attached to the Property.

4. That, to Seller's knowledge, there are no disputes concerning the lines and corners of the Property.

5. That, to Seller's knowledge, there are no pending suits, proceedings, judgments, bankruptcies, liens or executions against the Seller, either in the county where the Property is located or in any other county in the State of Georgia or elsewhere which affect title to the Property.

6. That no repairs or improvements have been made to the Property within the last ninety (90) days at the request of Seller, other than those for which all costs for labor, material and services incurred in connection therewith have been paid in full, and no mechanic, materialman, laborer, or other party claims or has the right to claim any lien against the Property by virtue thereof.

7. That, to Seller's knowledge, Seller has been in open notorious, adverse and peaceful possession of the Property and that the undersigned deponent knows of no adverse claim to this title to the Property.

8. That, to Seller's knowledge, there are no persons or other parties in possession of the Property, nor do any persons or parties have any right or claim to possession of the Property extending beyond the date of this Seller's Affidavit.

9. That the only broker engaged by Seller for the purchase and sale of the Property, if any, will be paid in full at closing.

10. That this Affidavit is made for the purposes of inducing Fidelity National Title Insurance Company to issue a title insurance policy in connection with the sale of the Property and to induce BBI REAL ESTATE HOLDINGS, LLC, an Ohio limited liability company to purchase the Property.

[SIGNATURE PAGE FOLLOWS.]

[SIGNATURE PAGE TO SELLER'S AFFIDAVIT]

SFG ISF COLUMBUS WILLIAMS, LLC,
a Delaware limited liability company

By: _____

Name:

Title:

STATE OF _____

COUNTY OF _____

SWORN TO AND SUBSCRIBED before me this ____ day of _____, 2026, by
_____. S/he ☐ is personally known to me or ☐ has produced a driver's
license as identification.

(NOTARY SEAL)

Notary Public Signature

(Name typed, printed or stamped)

Exhibit A

Legal Description

[To be inserted.]

Exhibit B

Liens and Encumbrances

[To be inserted based on final proforma.]

EXHIBIT J

Due Diligence Materials

1. Real estate tax bills and statements (including any special assessments) for the Property for the current year and the two (2) preceding calendar years;
2. All service, maintenance, management, landscaping, security, janitorial, equipment, and other contracts to which Seller is a party affecting the Property that will survive Closing or for which Buyer would otherwise have liability (collectively, the “Vendor Contracts”);
3. Copies of all Leases (primarily to verify term dates and termination provisions, and ensure there are no purchase options);
4. Seller’s most recent owner’s title insurance policy and any prior title commitments or policies, in each case in Seller’s possession;
5. The most recent survey of the Property in Seller’s possession (including any updates or recertifications);
6. Any correspondence, notices, citations, orders, or violations received by Seller within the last two (2) years from any governmental authority relating to zoning, building code, fire code, health, safety, environmental matters, or other compliance issues concerning the Property; and
7. Phase I environmental report dated March 26, 2021, prepared by Partner Assessment Corporation.